

COMPLETE LEARNING SESSION

Polity 37 — Central Vigilance Commission (CVC) and Central Bureau of Investigation (CBI)

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

RULE-BOUND ANTI-CORRUPTION ARCHITECTURE



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 37 — Central Vigilance Commission (CVC) and Central Bureau of Investigation (CBI)

Complete learning session + solved PYQs + solved practice + final register notes

Legal/current control date: 19 August 2026 (Asia/Kolkata)

Tag key: [FACT] = directly supported by a named legal/official source; [ANALYSIS] = reasoned examination; [CURRENT] = checked for this package's control date; [LIMIT] = a boundary, qualification, unresolved issue, or deliberately unfrozen fact.

How to Use This Package

This is an independent UPSC learning session, not a short revision sheet. Read the concept sections first, then attempt the PYQ and practice workbook. The **Final Consolidated Register Notes** are deliberately placed last.

Visual 01 — Learning Roadmap

```
FOUNDATION
|
+--> Evolution: SPE -> DSPE Act -> CBI resolution -> CVC resolution -> CVC Act
|
CORE INSTITUTIONS
|
+--> CVC design + section 8 functions + CVO system
+--> CBI organisation + DSPE police powers + offence domains
|
FEDERAL CONTROL
|
+--> DSPE sections 5-6 -> State consent -> court-directed investigation
|
INDEPENDENCE AND ACCOUNTABILITY
|
+--> Director selection/tenure -> superintendence split -> case law
|
APPLICATION
|
+--> Lokpal interface -> investigation safeguards -> comparisons -> reforms
|
PRACTICE
|
+--> Verified PYQs -> 48 MCQs -> 8 solved Mains -> register notes
```

Caption: The topic moves from legal identity to institutional interaction, federalism, safeguards and exam application.

1. Core Idea: One Anti-Corruption System, Different Legal Roles

[FACT] The CVC and CBI are not interchangeable. The **CVC is a statutory vigilance, supervisory and advisory institution** under the Central Vigilance Commission Act, 2003. The **CBI is an organisation created by a Government of India resolution dated 1 April 1963**, while the police establishment from which its investigative powers are principally derived is the **Delhi Special Police Establishment (DSPE)** constituted under the DSPE Act, 1946.

[ANALYSIS] UPSC commonly tests the gap between a familiar label and its precise legal source. “CBI is a statutory body under the DSPE Act” is imprecise: the Act constitutes and empowers the DSPE; the 1963 executive resolution established the wider CBI organisation and made the DSPE its Investigation and Anti-Corruption Division.

[LIMIT] Neither institution is a universal anti-corruption authority. Their jurisdiction, functions, offence domain, personnel coverage and coercive powers depend on the governing statute, notification, reference, consent or court order.

Visual 02 — Legal Identity in One Frame

Institution/establishment	Creation or legal basis	Primary character	Key exam correction
CVC	CVC Act, 2003; preceded by 1964 resolution	Statutory apex vigilance institution	Supervisory/advisory; not a police station or court
CBI	Government of India resolution, 1 April 1963	Executive-created organisation	No standalone “CBI Act”
DSPE	DSPE Act, 1946	Statutory police establishment	Source of core police powers exercised by CBI investigators
Lokpal	Lokpal and Lokayuktas Act, 2013	Statutory anti-corruption ombudsman	Can route preliminary inquiry/investigation as the Act provides
Departmental CVO	Vigilance-administration framework	Internal vigilance node	Works within an organisation; not a substitute for criminal investigation

Caption: Legal basis determines power; similar anti-corruption purposes do not create identical jurisdictions.

Visual 03 — Five Questions Before Naming an Agency

1. WHAT IS THE ALLEGED OFFENCE?
|
2. WHO IS THE PERSON / WHICH ORGANISATION?
|
3. WHICH TERRITORY IS INVOLVED?
|
4. WHAT IS THE ENTRY ROUTE?
complaint / reference / consent / notification / court order
|
5. WHAT OUTPUT IS SOUGHT?
vigilance advice / departmental action / FIR-investigation /
prosecution / adjudication

Caption: Institutional competence is decided by offence, person, territory, entry route and legal output—not by prestige.

2. Evolution: From Wartime Police Unit to a Layered Vigilance System

Visual 04 — Evolution Timeline

Year	Institutional development	Legal significance
1941	Special Police Establishment (SPE) set up by executive order during World War II	Investigated bribery and corruption connected with War and Supply transactions
1943	Wartime ordinance gave the SPE a legal framework	Transitional legal basis during the war
1946	Delhi Special Police Establishment Act enacted	DSPE obtained continuing statutory police powers
1963	CBI established by Home Ministry resolution dated 1 April	Executive creation; DSPE became a division within CBI
1964	CVC created by Government resolution following Santhanam Committee recommendation	Executive vigilance body at inception
1997	<i>Vineet Narain v Union of India</i>	Supreme Court prescribed institutional safeguards and pressed for statutory CVC
2003	CVC Act enacted	CVC became statutory; DSPE superintendence architecture was codified
2013-14	Lokpal and Lokayuktas Act created a new complaint-routing and supervisory interface	Added Lokpal-CVC-CBI coordination rules
2021	CVC and DSPE tenure-extension amendments	Permitted structured one-year extensions up to aggregate five years, subject to statutory conditions
2023	<i>Dr Jaya Thakur v Union of India</i>	Supreme Court upheld the amendment framework; extension is not automatic

Caption: CBI and CVC began through executive action, but their present powers are not traceable to the same legal instrument.

[FACT] The official CBI history records the SPE's 1941 wartime origin, extension to railway corruption, the DSPE Act of 1946, and the 1963 CBI resolution.

[FACT] Section 24 of the CVC Act connects the statutory Commission with the earlier CVC created through the Ministry of Home Affairs resolution dated 11 February 1964.

[ANALYSIS] Institutional evolution produced a **hybrid system**: executive organisation, statutory police powers, statutory vigilance oversight, executive administration, federal consent and constitutional-court review coexist.

Visual 05 — Executive Creation vs Statutory Power

EXECUTIVE RESOLUTION

Creates organisational form
Can allocate administrative business
Example: CBI, 1963

PARLIAMENTARY STATUTE

Confers defined legal powers
Sets jurisdiction and safeguards
Example: DSPE Act, CVC Act

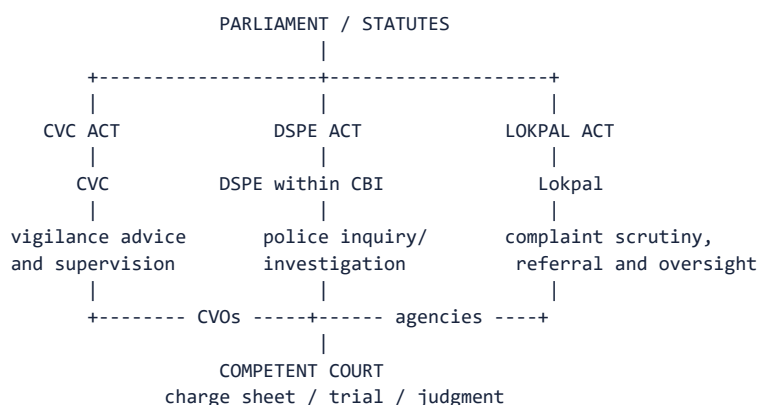
BOTH OPERATE TOGETHER

CBI organisation + DSPE statutory police establishment

Caption: An executive origin does not mean that every operational power is merely executive; statutory powers must be traced separately.

3. The Institutional Architecture

Visual 06 — Anti-Corruption and Investigation Architecture



Caption: Advice, investigation, prosecution and adjudication occur at different institutional stages.

Visual 07 — Power-Type Matrix

Power type	CVC	CBI/DSPE	Lokpal	Court
Vigilance-system supervision	Yes, within statutory field	No	Limited to matters under its Act	Judicial review only
Police investigation	No general police power	Yes, within legal jurisdiction	May direct an agency; own Inquiry Wing is for preliminary inquiry	May direct investigation in appropriate cases
Arrest/search/seizure as police	No general power	Yes, subject to criminal procedure and special statutes	Search may be authorised through agency under Lokpal Act	Issues judicial warrants/orders as law provides
Prosecution decision/output	Advises/reviews sanction progress	Investigates and files statutory report; prosecution structure applies	Can direct Prosecution Wing/agency under its Act	Takes cognizance, tries and decides
Final guilt determination	No	No	No	Yes

Caption: The power to supervise investigation is not the power to convict, and an investigative recommendation is not proof of guilt.

4. CVC: Status, Composition and Appointment

[FACT] Section 3 of the CVC Act constitutes the Commission. It consists of:

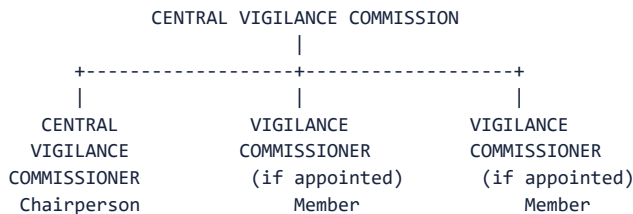
- one **Central Vigilance Commissioner**, as Chairperson; and
- **not more than two Vigilance Commissioners**, as Members.

[FACT] The statute draws eligible persons from two broad experience pools:

1. All-India Service, Union civil service or Union civil post experience involving vigilance, policy-making and administration, including police administration; or
2. specified public-sector corporate experience and expertise in finance (including insurance and banking), law, vigilance and investigations.

[FACT] The proviso prevents all three offices from being monopolised by one eligibility category: not more than two persons may belong to either category.

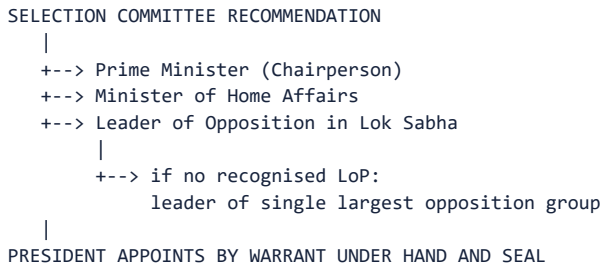
Visual 08 — Composition



Maximum size = 3; statutory wording = "not more than two" VCs

Caption: The Commission is multi-member but the Act does not require that both Vigilance Commissioner posts be occupied at all times.

Visual 09 — Appointment Chain



Caption: The statutory substitute for an unrecognised Lok Sabha LoP is expressly written into the CVC Act.

[FACT] Section 4 states that the President appoints the CVC and VCs by warrant under hand and seal after obtaining the recommendation of the committee above.

[LIMIT] A vacancy in the selection committee does not by itself invalidate an appointment. This statutory rule must not be confused with whether a particular selection process was fair on its facts.

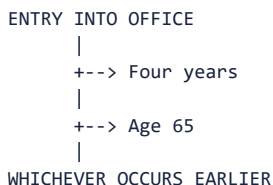
Visual 10 — Eligibility Logic

Category A	Category B	Diversity guardrail
Union/All-India public-service experience	Public-sector corporate office/expertise	Maximum two appointees from either single category
Vigilance, policy, administration, police administration	Finance, insurance, banking, law, vigilance, investigation	At least one seat must therefore come from the other category if all three seats are filled

Caption: The Act combines administrative knowledge with specialist expertise and inserts a limited category-balancing rule.

5. CVC Tenure, Reappointment, Post-Tenure Bars and Removal

Visual 11 — Tenure Clock



VC -> may be appointed CVC
but aggregate service as VC + CVC cannot exceed four years

Caption: "Four years or 65" is a ceiling rule; appointment as CVC does not restart a former VC's four-year clock.

[FACT] The CVC is ineligible for reappointment in the Commission after ceasing office. A VC may be appointed CVC through the statutory process, subject to the aggregate four-year cap.

[FACT] On ceasing office, the CVC and VCs are ineligible for specified diplomatic/presidential assignments and for further employment in an office of profit under the Union or a State.

Visual 12 — Post-Tenure Restriction

After office	Legal position
Reappointment as CVC/VC	CVC cannot be reappointed; VC-to-CVC route is specially allowed within aggregate cap
Diplomatic assignment / UT Administrator / specified presidential appointment	Barred
Further government office of profit	Barred
Private activity	Governed by other applicable law/ethics; the cited statutory bar is not a universal ban on every activity

Caption: State the statutory bars exactly; do not enlarge them into an unsupported lifetime prohibition.

Visual 13 — Two Removal Routes

ROUTE 1: PROVED MISBEHAVIOUR OR INCAPACITY

President makes reference

- > Supreme Court inquiry
- > Court reports whether removal is warranted
- > President orders removal

ROUTE 2: LISTED DIRECT STATUTORY GROUNDS

President may remove for:

insolvency / conviction involving moral turpitude /
outside paid employment / mental or physical infirmity /
prejudicial financial or other interest

Caption: The Supreme Court inquiry route and the expressly listed direct-removal grounds must be kept separate.

[FACT] The President may suspend and prohibit attendance during the Supreme Court inquiry after a reference.

[FACT] A prohibited interest in a Government of India contract or agreement, beyond the ordinary position of a member of an incorporated company, is statutorily deemed misbehaviour.

[ANALYSIS] Security of tenure protects institutional independence; tightly defined direct-removal grounds protect integrity and functionality.

Visual 14 — Independence Safeguards and Limits

Design safeguard	Independence value	Continuing limit
Multi-member selection committee	Reduces unilateral executive choice	Committee remains political-executive heavy
Fixed term/age ceiling	Protects against ordinary pleasure removal	Short maximum tenure may reduce continuity
Supreme Court inquiry for proved misbehaviour/incapacity	High removal threshold	Direct statutory grounds remain
Post-tenure employment bars	Reduces inducement risk	Does not itself create budget/cadre autonomy
Expenses charged on Consolidated Fund of India	Financial protection	Operational capacity still depends on staffing and administration

Caption: Institutional independence is cumulative; no single safeguard eliminates all executive or organisational dependence.

6. CVC Functions Under Section 8

[FACT] Section 8 is the operational core of the CVC Act. It gives the Commission a combination of DSPE superintendence, constrained directions, inquiry/investigation routing, progress review, advice and vigilance-administration supervision.

Visual 15 — Section 8 Function Map

Section 8 function	What CVC may do	Boundary
DSPE superintendence	Supervise DSPE functioning for Prevention of Corruption Act investigations and connected same-trial offences	Does not cover every CBI matter
Directions to DSPE	Give directions for discharge of the statutory responsibility	Cannot require investigation or disposal of a particular case in a particular manner
Central Government reference	Inquire or cause inquiry/investigation concerning covered central/public-sector servants	Reference and statutory offence/person coverage matter
Complaint jurisdiction	Inquire or cause inquiry/investigation against specified categories	Not every public servant everywhere
Investigation review	Review progress of relevant DSPE investigations	Review is not adjudication
Sanction review	Review progress of prosecution-sanction applications	Review does not erase the competent authority's statutory role
Advice	Advise Union Government and covered central organisations	Advice is not automatically binding
Vigilance administration	Supervise vigilance administration across covered central entities	Cannot contradict Government vigilance directions or issue policy directions beyond the proviso

Caption: CVC's section 8 powers are broad within central vigilance, but each is textually bounded.

Visual 16 — Superintendence Without Case Dictation

PERMITTED LEVEL -----	PROHIBITED LEVEL -----
systemic supervision	"reach this result"
progress monitoring	"charge this named person"
lawful general directions	"close this particular case"
sanction-delay review	"investigate in this exact manner"
integrity/process oversight	"dispose of case as instructed"

Caption: The proviso protects investigative judgment by prohibiting CVC from dictating the particular manner of investigation or disposal.

[ANALYSIS] "Superintendence" should be understood as lawful oversight of the agency and process, not remote authorship of the evidence, charges or final report in a named case.

Visual 17 — Person-Coverage Gate

COMPLAINT RECEIVED
Is the alleged conduct within the statutory offence field?
Is the officer/person in a section 8(2) covered category?
Is there a valid reference/complaint route?
YES -> CVC may inquire or cause inquiry/investigation
NO -> another statutory/departmental route may apply

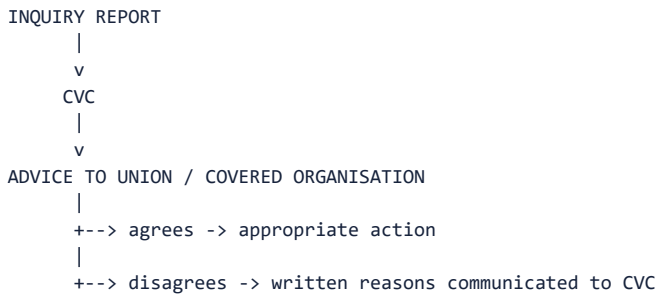
Caption: A complaint's seriousness does not by itself confer CVC jurisdiction.

[FACT] For the complaint route in section 8(1)(d), section 8(2) covers:

- members of All-India Services serving in connection with Union affairs and Group A officers of the Central Government; and
- notified levels in covered central corporations, Government companies, societies and local authorities, with the Act's transitional deeming provision.

[LIMIT] Lokpal-referred complaints introduce a separate statutory interface. Do not collapse the original section 8 complaint category into all Group A-D public servants without stating the Lokpal route.

Visual 18 — Advice Is Not a Command



Caption: Section 17 requires consideration of CVC advice and written reasons for disagreement, but the advice is not self-executing punishment.

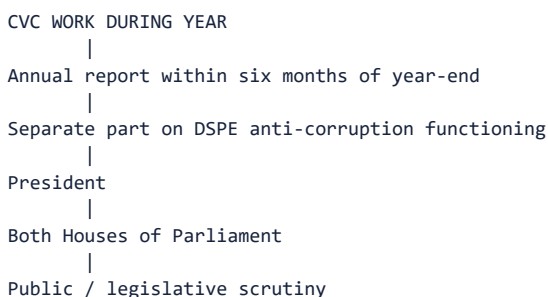
[ANALYSIS] This model combines expert vigilance review with administrative responsibility. Its weakness is potential dilution through repeated disagreement or delay; its accountability tool is reason-giving.

Visual 19 — CVC's Inquiry-Related Civil-Court Powers

CVC may, for specified inquiries	CVC still is not
Summon and enforce attendance	A criminal trial court
Examine on oath	A general police station
Require discovery/production of documents	A sentencing authority
Receive affidavit evidence	A universal ombudsman
Requisition public records	A substitute for the competent disciplinary authority
Issue commissions for witnesses/documents	The final judge of guilt

Caption: Civil-court-like procedural powers do not transform the Commission into a court of criminal jurisdiction.

Visual 20 — Annual Accountability Loop



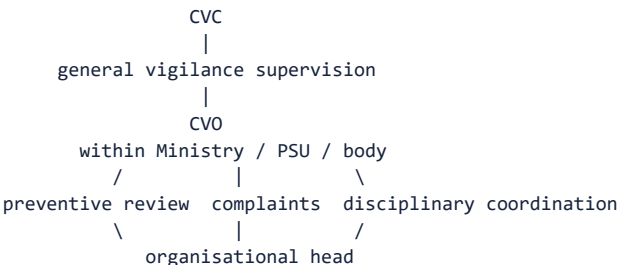
Caption: Reporting creates parliamentary visibility without turning Parliament into the investigator of individual cases.

7. CVOs and Departmental Vigilance

[FACT] Chief Vigilance Officers (CVOs) are the vigilance nodes within Ministries, departments and covered public organisations. They support preventive vigilance, complaint handling, examination of processes, disciplinary coordination and communication with the CVC.

[ANALYSIS] A CVO's proximity to organisational records can identify systemic risk early. The same proximity can create conflict or dependence if the post lacks functional protection.

Visual 21 — CVC-CVO Operating Chain



Caption: The CVO is an internal vigilance bridge, not an independent criminal court or a branch office with unlimited CBI powers.

Visual 22 — Preventive vs Punitive Vigilance

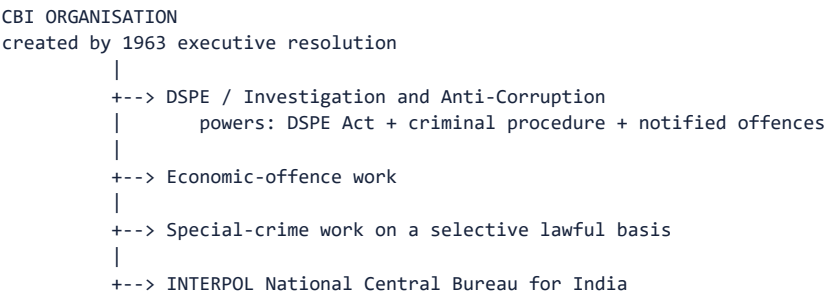
Preventive vigilance	Punitive/disciplinary response
Process redesign	Fact-finding after alleged misconduct
Rotation in sensitive posts	Departmental charge and inquiry
Conflict-of-interest control	Penalty by competent authority
Procurement transparency	Referral for criminal investigation where warranted
Audit trails and risk analytics	Prosecution-sanction process where applicable

Caption: A mature vigilance system prevents opportunity as well as responds to completed misconduct.

8. CBI and DSPE: Organisation, Police Power and Jurisdiction

[FACT] The CBI's organisational identity and the DSPE's statutory identity must be stated together but not merged. The 1963 resolution broadened the organisational mandate; investigators exercise police powers through the DSPE Act and applicable criminal law.

Visual 23 — CBI/DSPE Legal Stack



Caption: Organisational wings do not enlarge statutory police jurisdiction beyond law, notification, consent or court order.

Visual 24 — DSPE Act Jurisdiction Ladder

```

SECTION 2
DSPE police powers in Union Territories
|
SECTION 3
Central Government notifies offence classes
|
SECTION 5
Central Government may extend powers/jurisdiction to a State area
|
SECTION 6
State consent required for exercise in that State area
|
EXCEPTIONAL CONSTITUTIONAL ROUTE
Supreme Court / High Court direction under Articles 32 / 226
  
```

Caption: State consent is one route; a constitutional-court direction is a distinct route and does not derive from State consent.

[FACT] Under section 2, DSPE members have police powers in Union Territories. Under section 3, the Central Government specifies offence classes by notification. Under section 5, it may extend DSPE powers and jurisdiction to State areas; section 6 ordinarily requires the State Government's consent for that exercise.

[LIMIT] "CBI can investigate any case in India" and "CBI can never act without State consent" are both overbroad.

Visual 25 — Officially Supported CBI Domains

Domain	Typical legal character	Essential qualification
Anti-corruption	PC Act offences and connected offences	CVC superintendence applies to the relevant DSPE investigations
Economic offences	Complex fraud/economic crime under notified laws	CBI is not the same as ED or SFIO
Special crimes	Serious conventional crime on a selective lawful basis	Territorial jurisdiction/consent/court-order questions remain
INTERPOL NCB	International police-cooperation channel for India	Coordination does not itself determine domestic guilt or jurisdiction

Caption: CBI's diverse work remains legally compartmentalised.

Visual 26 — Police Power Is Not Organisational Reputation

```

HIGH PUBLIC IMPORTANCE
  does not automatically produce
LEGAL JURISDICTION

Jurisdiction requires:
DSPE power + notified offence + territorial authority
+ applicable consent/reference/court direction
+ compliance with criminal-procedure safeguards
  
```

Caption: Public demand for a CBI probe is politically relevant but not a substitute for a lawful jurisdictional route.

9. Superintendence, Administration and Investigative Judgment

Visual 27 — Statutory Superintendence Split

DSPE matter	Superintendence under section 4	Administration
Investigation of PC Act offences	CVC	Director, CBI/DSPE under statutory structure
Other DSPE matters	Central Government, save as otherwise provided	Director, CBI/DSPE
Lokpal-referred preliminary inquiry/investigation	Lokpal's special section 25 power operates notwithstanding DSPE section 4/CVC section 8	Agency remains bound by law and Lokpal Act safeguards

Caption: Superintendence changes with the legal subject and referral route; there is no single controller for every CBI function.

[FACT] DSPE Act section 4(1) vests superintendence over PC Act investigations in the CVC. Section 4(2) vests superintendence over other matters in the Central Government, subject to other statutory provisions. Section 4(3) vests administration in the Director.

[FACT] The Lokpal Act creates a special superintendence-and-direction rule for matters referred by the Lokpal to DSPE, while repeating the prohibition on requiring investigation or disposal in a particular manner.

Visual 28 — Administration vs Case Investigation

Administrative control may concern	Investigative judgment concerns
Budget and establishment	Evidence collection in a case
Personnel policy and deputation	Witness assessment
Infrastructure and inter-departmental coordination	Search/arrest decisions under law
Allocation within statutory framework	Legal sufficiency for final report
Service conditions	Whether evidence supports charge or closure

Caption: CBI's administrative placement under DoPT does not prove that the PMO lawfully dictates every investigative decision.

[ANALYSIS] Independence is compromised when administrative leverage is used to influence case outcomes. Accountability is compromised when "independence" is invoked to avoid lawful supervision, audit, courts or reasons. The constitutional objective is **insulated investigation plus answerable power**.

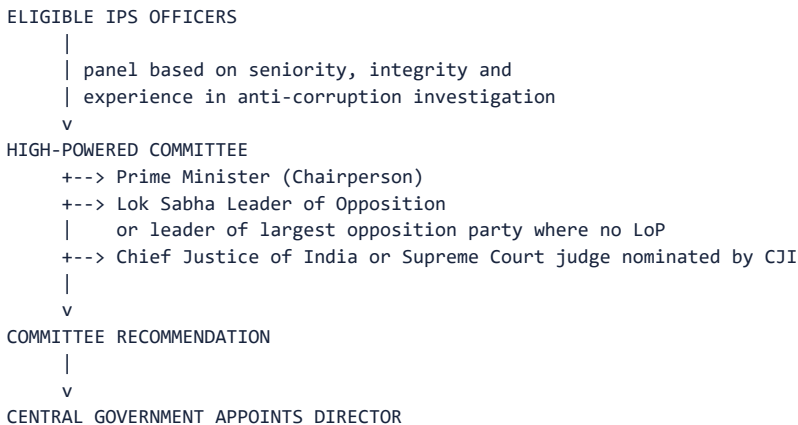
Visual 29 — Four-Layer Control Model

LAYER 1: LAW
DSPE Act / CVC Act / PC Act / Lokpal Act / criminal procedure
|
LAYER 2: INSTITUTIONAL OVERSIGHT
CVC / Lokpal / Central Government within allocated fields
|
LAYER 3: AGENCY ADMINISTRATION
Director and internal hierarchy
|
LAYER 4: JUDICIAL CONTROL
trial court / High Court / Supreme Court

Caption: The layers constrain one another; none is a licence for extra-legal command.

10. CBI Director: Appointment, Tenure, Transfer and Senior Posts

Visual 30 — Director Appointment Pipeline



Caption: The present section 4A high-powered committee is different from the older CVC-chaired panel that prepares the eligible officer panel.

[FACT] DSPE Act section 4A requires the Central Government to appoint the Director on the recommendation of the Prime Minister-LoP-CJI committee. Where no LoP is recognised, the leader of the single largest opposition party in the Lok Sabha is substituted.

[FACT] Before the high-powered committee stage, the CVC-chaired institutional committee prepares the panel under the statutory criteria, after considering the outgoing Director's views.

[LIMIT] Selection by a high-powered committee is an independence safeguard, not an immunity from legal review or administrative accountability.

Visual 31 — Director Tenure and Extension



Maximum is not an automatic entitlement.

Caption: The 2021 amendment creates a conditional extension architecture, not a routine five-year appointment.

[FACT] Section 4B protects a minimum two-year tenure. Transfer requires prior consent of the section 4A committee.

[FACT] The 2021 amendment permits extension in public interest, on the committee's recommendation, for reasons recorded in writing, one year at a time, with no extension beyond an aggregate five-year period including the initial appointment.

[FACT] In *Dr Jaya Thakur v Union of India* (2023 INSC 616), the Supreme Court upheld the amended statutory extension framework. The Court's separate conclusion that particular extensions granted to the then Director of Enforcement violated an earlier mandamus must not be converted into invalidation of the CBI/ED amendment architecture itself.

Visual 32 — Appointment, Transfer and Extension Controls

Decision	Statutory control	Independence purpose
Initial appointment	High-powered section 4A committee recommendation	Disperses selection power
Tenure below two years	Generally barred by protected minimum	Prevents easy premature removal
Transfer during protected tenure	Prior committee consent	Prevents transfer-equivalent ouster
Annual extension	Public interest + committee recommendation + written reasons	Requires fresh justification
Aggregate service	Maximum five years	Prevents indefinite continuation

Caption: Appointment security and extension accountability operate together.

Visual 33 — Alok Verma Procedure Principle

```

FORMAL TRANSFER?
|
+--> committee consent required

DIVESTING DIRECTOR OF POWERS / FUNCTIONS?
|
+--> has transfer-like effect
+--> cannot bypass section 4A committee protection
  
```

Caption: In Alok Kumar Verma v Union of India (2019), substance prevailed over the label attached to the executive action.

[FACT] The Supreme Court held that divesting the Director of powers and functions has transfer-equivalent consequences within the protective statutory scheme and required consideration by the section 4A committee.

Visual 34 — Senior Appointment Architecture

Post/level	Core statutory relationship
Director, CBI	Appointed by Central Government on section 4A high-powered committee recommendation
SP and above in DSPE	CVC-chaired committee recommends appointment, extension or curtailment of tenure after consulting Director
Director of Prosecution	Central Government appoints on CVC recommendation; minimum two-year tenure
Director of Prosecution's work	Exercises powers/functions under overall supervision and control of Director, CBI

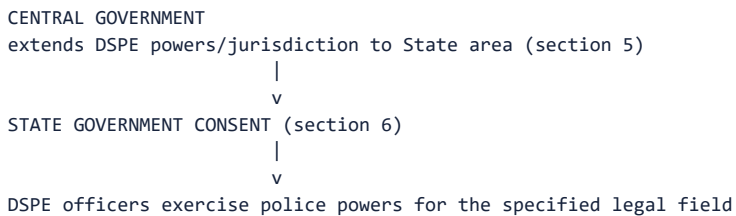
Caption: Do not confuse the Director-selection committee with the CVC-chaired machinery for other senior appointments.

[LIMIT] Current officeholders are deliberately not named. UPSC answers should prefer statutory design over transient personalities.

11. State Consent and Indian Federalism

[FACT] Police and public order are primarily State List fields. The DSPE Act therefore uses a territorial-consent architecture when the Union police establishment exercises powers in a State.

Visual 35 — Sections 5 and 6 as a Federal Sequence



Caption: Extension and consent are distinct statutory steps; both must be read with offence notification and any court order.

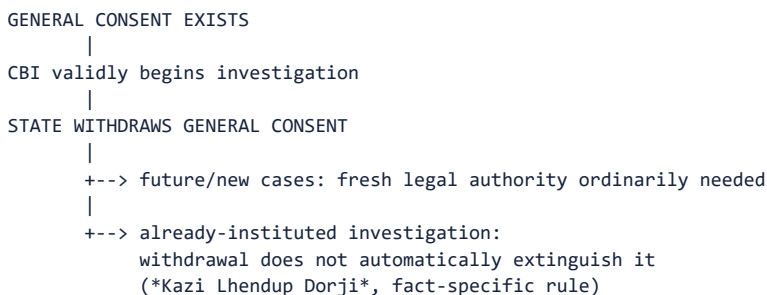
Visual 36 — General Consent vs Case-Specific Consent

General consent	Case-specific consent
Standing consent for defined classes/categories	Consent for a named case, FIR, persons or facts
Reduces repeated administrative requests	Preserves closer State control
May contain conditions/riders	Scope depends on precise terms
Can be prospectively withdrawn	Must be evaluated for each requested case

Caption: “Consent” is not one undifferentiated instrument; its text, date, conditions and scope matter.

[ANALYSIS] General consent supports speed and continuity. Case-specific consent gives States a stronger gatekeeping role. The institutional risk is reciprocal politicisation: refusal may obstruct neutral investigation, while over-centralisation may weaken federal trust.

Visual 37 — Withdrawal of General Consent



Caption: Withdrawal is prospective in the cited precedent; never write that it automatically nullifies every pending investigation.

[FACT] In *Kazi Lhendup Dorji v CBI* (1994), the Supreme Court held that withdrawal of consent did not operate retrospectively to terminate investigations already undertaken; CBI could complete them and submit the statutory police report.

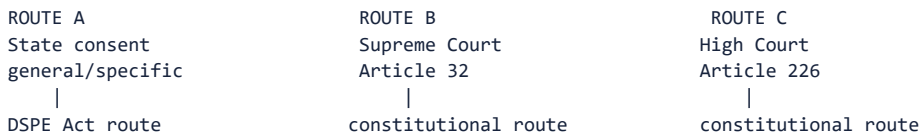
[LIMIT] The holding does not create a free-standing power to start any later investigation without consent.

Visual 38 — Union Territory Baseline

Territory	DSPE baseline
Union Territory	Section 2 directly gives DSPE members the relevant police powers, subject to the Act
State	Sections 5-6 ordinarily require extension plus State consent
State under SC/HC direction	Constitutional-court direction is an independent authority route

Caption: A State-consent answer is incomplete if it fails to distinguish the Union Territory baseline.

Visual 39 — Three Routes to a CBI/DSPE Investigation in a State



Consent and court direction are legally distinct.

Caption: Constitutional courts do not “deem” State consent; they exercise their own constitutional power.

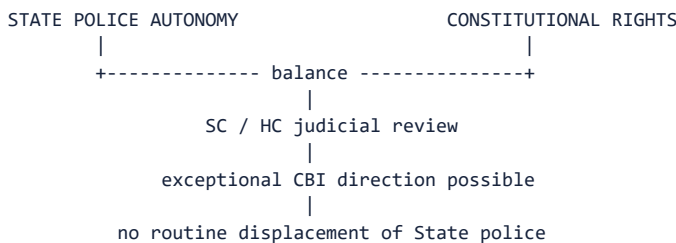
12. Constitutional Courts and the Consent Rule

[FACT] In *State of West Bengal v Committee for Protection of Democratic Rights* (2010), a Constitution Bench held that a High Court may direct a CBI investigation in a State without State consent while exercising Article 226 power. The same constitutional logic applies to the Supreme Court under Article 32.

[FACT] The Court held that this does not violate the federal structure or separation of powers because judicial review is part of the Constitution and the courts enforce fundamental rights and legality.

[LIMIT] The Court also cautioned that the extraordinary power must be used **sparingly, cautiously and in exceptional situations**—not merely because allegations are made against local police.

Visual 40 — CPDR Federal Balance



Caption: The judgment preserves federalism by making court-directed CBI investigation exceptional rather than unavailable.

Visual 41 — What “Consent Is Not Absolute” Means

Correct meaning	Incorrect overstatement
State consent controls the ordinary DSPE Act route	State consent has no constitutional value
SC/HC may order CBI investigation without consent	Union executive can always ignore section 6
Existing valid investigations may survive later withdrawal	Withdrawal is always legally meaningless
Other statute/court routes must be separately shown	CBI has inherent nationwide police jurisdiction

Caption: The federal answer is about qualified routes, not about declaring one level of government supreme in every case.

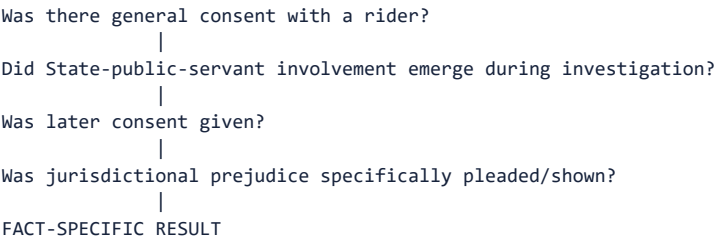
13. Consent Case Law: Exact Holdings, Narrow Inferences

Visual 42 — Consent Precedent Matrix

Case	Holding useful for Topic 37	Qualification
<i>Kazi Lhendup Dorji v CBI</i> (1994)	Later withdrawal did not halt investigations validly initiated under earlier consent	Prospective-withdrawal principle; not blanket authority for new cases
<i>State of West Bengal v CPDR</i> (2010)	HC/SC may constitutionally order CBI investigation without State consent	Exceptional, cautious exercise
<i>Fertico Marketing and Investment Pvt Ltd v CBI</i> (2020)	On its facts, the Court rejected invalidity claims involving a general-consent rider, later emergence of State servants, subsequent consent and no pleaded prejudice	Do not generalise that “post-facto consent always cures” absence of consent
<i>State of West Bengal v Union of India</i> (2024 INSC 502)	Supreme Court rejected a preliminary maintainability objection to the State’s original suit	Merits of the consent dispute were expressly not decided in that judgment

Caption: Case names score only when paired with the narrow proposition actually decided.

Visual 43 — Fertico Qualification Funnel



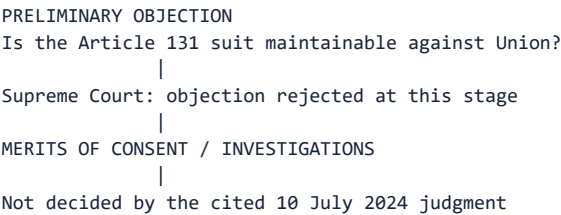
Not a universal "later consent cures everything" rule.

Caption: The factual chain is part of the holding; removing it produces an unsafe generalisation.

[FACT] In *Fertico Marketing* the Supreme Court dealt with the particular consent terms, private parties, the way State servants emerged during investigation, later consent, and the absence of a pleaded prejudice.

[ANALYSIS] The safe UPSC formulation is: **consent defects must be assessed through statutory text, consent terms, timing, parties, prejudice and precedent—not slogans.**

Visual 44 — 2024 West Bengal Original-Suit Control



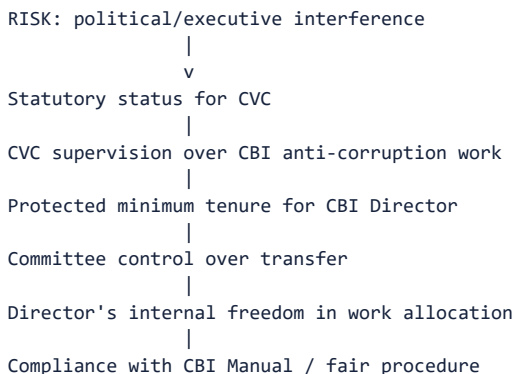
Caption: A maintainability ruling permits adjudication; it does not predetermine the final merits.

[CURRENT] The package relies on the official 2024 judgment only for its stated preliminary result. It does not claim a later merits outcome without a separately verified official decision.

14. The Vineet Narain Safeguard Architecture

[FACT] *Vineet Narain v Union of India* (1997) arose from concern about investigative inertia and executive interference. The Supreme Court framed institutional directions pending suitable legislation.

Visual 45 — Vineet Narain Safeguard Chain



Caption: The judgment addressed both external interference and internal investigative professionalism.

[ANALYSIS] The post-*Vineet Narain* model is not “CBI outside government.” It is a set of legal buffers within a system that still requires administration, funding, staffing, legislative authority and judicial control.

Visual 46 — Judgment-to-Statute Trajectory

Judicial concern/direction	Later statutory expression
CVC should have statutory status	CVC Act, 2003
CVC supervision of anti-corruption investigation	CVC Act section 8; DSPE Act section 4
Director minimum two-year tenure	DSPE Act section 4B
Committee role in appointment/transfer	DSPE Act sections 4A-4B
Professional agency process	CBI Manual, criminal procedure and judicial review continue

Caption: Institutional reform moved from continuing mandamus to statutory codification.

15. Judicial Controls on Director Independence

Visual 47 — Director Cases and Principles

Case	Principle
<i>Vineet Narain</i> (1997)	Fixed minimum tenure, oversight and professional autonomy safeguards
<i>Common Cause</i> line of institutional litigation	Reinforced concern with lawful selection, tenure and non-arbitrary executive action
<i>Alok Kumar Verma</i> (2019)	Divesting powers can be transfer-equivalent; committee safeguard cannot be evaded by label
<i>Dr Jaya Thakur</i> (2023)	2021 extension framework upheld; statutory conditions control each extension

Caption: Judicial doctrine protects process, not personal entitlement to office.

Visual 48 — Tenure Is a Floor, Extension Is Conditional

MINIMUM TENURE	EXTENDED TENURE
-----	-----
Institutional protection	Not automatic
Prevents premature displacement	Fresh statutory satisfaction
Committee control over transfer	One year at a time
	Aggregate ceiling

Caption: Independence requires a secure floor; accountability requires reasoned controls above that floor.

[LIMIT] The legal five-year maximum is not a guarantee that every Director will or should serve five years.

16. “Caged Parrot”: Use as Context, Not Ratio

[FACT] The phrase “caged parrot speaking in its master’s voice” entered public discourse through Supreme Court courtroom criticism during coal-block investigation proceedings.

[LIMIT] It should be used as **judicial criticism and institutional context**, not presented as the binding ratio of a reported judgment creating a new legal test.

Visual 49 — Safe Use of the Metaphor

Weak answer	Strong answer
“Supreme Court held CBI is a caged parrot; therefore all its probes are invalid.”	“The courtroom criticism captured public concern over executive influence; enforceable safeguards must still be traced to statute and judgments such as <i>Vineet Narain</i> and <i>Alok Verma</i> .”

Caption: Metaphor diagnoses a legitimacy problem; legal analysis identifies the actual remedy.

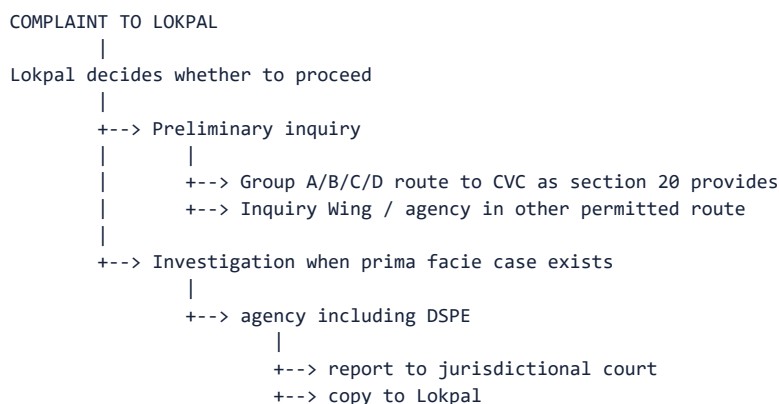
17. Lokpal, CVC, CBI and CVO: Complementary, Not Hierarchical Duplicates

[FACT] The Lokpal Act creates its own Inquiry Wing and Prosecution Wing. On receiving a complaint and deciding to proceed, the Lokpal may order preliminary inquiry by its Inquiry Wing or an agency including DSPE, or investigation by an agency including DSPE when a prima facie case exists, subject to the Act’s procedure.

[FACT] For preliminary inquiry into complaints concerning Group A-D public servants, section 20 routes the complaints to CVC. The CVC reports Group A-B preliminary inquiries to Lokpal; for Group C-D it proceeds under the CVC Act as the Lokpal Act states.

[FACT] For a matter referred to DSPE, section 25 gives Lokpal superintendence and direction notwithstanding DSPE section 4 and CVC section 8, but Lokpal too cannot require investigation/disposal in a particular manner.

Visual 50 — Lokpal Complaint Route



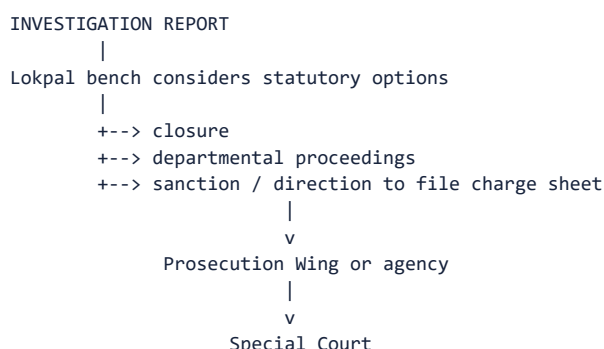
Caption: Lokpal can route work to CVC/CBI while retaining the specific statutory role assigned by its Act.

Visual 51 — Four-Institution Relationship

Institution	Primary role	Typical output
Lokpal	Statutory complaint scrutiny, inquiry/investigation direction, supervision for referred matters	Closure, departmental direction, charge-sheet/prosecution direction as Act provides
CVC	Central vigilance supervision, advice, inquiry routing and DSPE anti-corruption oversight	Vigilance advice, inquiry/investigation referral, progress review
CBI/DSPE	Police investigation	FIR/regular case, evidence, final police report/charge sheet or closure
CVO	Departmental preventive and punitive vigilance coordination	System correction, fact report, disciplinary processing, referral

Caption: The relationship is a legally allocated workflow, not a single chain of command.

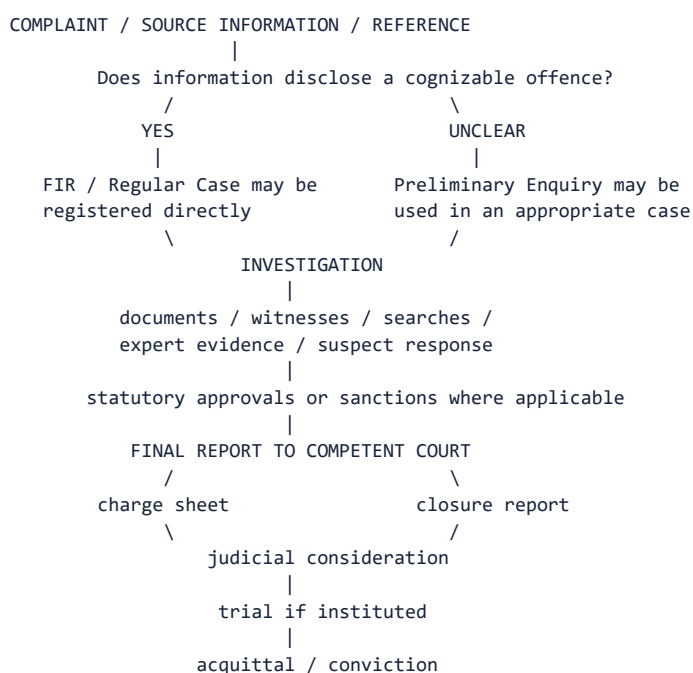
Visual 52 — Lokpal Prosecution Wing



Caption: The Prosecution Wing acts after Lokpal direction and within the statutory case route; it is not the CBI's general prosecution hierarchy.

18. Investigation Lifecycle and Safeguards

Visual 53 — Investigation Lifecycle



Caption: Preliminary Enquiry is not a mandatory right of the accused, and an FIR is not a finding of guilt.

[FACT] In *CBI v Thommandru Hannah Vijayalakshmi* (2021), the Supreme Court held that a Preliminary Enquiry is not mandatory before every corruption FIR. If complaint or “source information” discloses a cognizable offence, CBI may directly register a Regular Case. A Preliminary Enquiry remains valuable in an appropriate case but cannot be

demanded by the accused as a right.

[FACT] The Constitution Bench in *Lalita Kumari v Government of Uttar Pradesh* held that registration is mandatory where information discloses a cognizable offence; a preliminary inquiry is limited to ascertaining whether such an offence is disclosed in appropriate categories.

[CURRENT] Older judgments use the Code of Criminal Procedure terminology applicable when decided. Current procedure must be read with the Bharatiya Nagarik Suraksha Sanhita, 2023 and operative transition provisions; this package preserves the judgments' principles without pretending that every old section citation is the current code label.

Visual 54 — PE vs FIR

Preliminary Enquiry (PE)	FIR/Regular Case
Limited threshold verification where appropriate	Formal registration of cognizable offence information
Asks whether a cognizable offence is disclosed	Starts statutory investigation
Not mandatory in every corruption case	Required when legal registration threshold is met
Not a mini-trial	Not proof that allegation is true
Cannot become indefinite delay	Must be investigated fairly and lawfully

Caption: PE protects against abuse at the threshold; FIR protects the duty to investigate disclosed crime.

Visual 55 — Safeguard Gates

JURISDICTION GATE
offence + territory + consent/order
|
THRESHOLD GATE
PE where appropriate / FIR where required
|
PUBLIC-SERVANT DECISION GATE
PC Act section 17A approval where legally attracted
|
INVESTIGATION GATE
fair procedure + evidence integrity + judicial warrants where required
|
PROSECUTION GATE
sanction under applicable law where required
|
TRIAL GATE
open adjudication + defence rights + proof beyond reasonable doubt

Caption: Anti-corruption effectiveness and due process are sequential complements, not opposites.

[FACT] PC Act section 17A governs previous approval for enquiry, inquiry or investigation into specified allegations relatable to a public servant's recommendation or decision in discharge of official functions, subject to its statutory exceptions. Section 19 governs previous sanction for court cognizance of specified PC Act offences.

[LIMIT] Approval/sanction is not a declaration of innocence or guilt. Its applicability depends on the statutory conditions and facts.

Visual 56 — Presumption of Innocence

ALLEGATION != FIR != ARREST != CHARGE SHEET != CONVICTION

Each stage has a different legal threshold.
Only the competent court determines criminal guilt after trial.

Caption: CBI recommendations and media reporting cannot replace adjudication.

19. Comparison: CVC, CBI, Lokpal, ED, NIA and State Agencies

Visual 57 — Full Comparison Matrix

Body	Legal basis	Core domain	Coercive/investigative power	Territorial/jurisdiction control	Typical output
CVC	CVC Act, 2003	Central vigilance and anti-corruption supervision	No general police power	Covered central persons/entities and statutory references	Advice, review, referral, vigilance supervision
CBI/DSPE	CBI resolution + DSPE Act	Anti-corruption, economic offences, selected special crimes	Police powers through DSPE framework	UT baseline; State extension/consent; court direction	FIR, investigation, final report/charge sheet
Lokpal	Lokpal and Lokayuktas Act, 2013	Corruption complaints against covered Union public servants	Inquiry Wing; may direct agencies including DSPE; prosecution framework	Persons and procedures under Lokpal Act	Inquiry decision, investigation/prosecution/departmental direction
ED	FEMA, PMLA and related law	Foreign exchange and money laundering	Statute-specific investigation, search, attachment/arrest powers	Offence and proceeds-of-crime nexus under governing statutes	Complaint, attachment, adjudicatory/criminal proceedings
NIA	NIA Act, 2008 and scheduled-offence laws	National-security and scheduled offences	Police investigation under special statutory scheme	Central direction/statutory scheduled-offence architecture	Investigation and charge sheet before special court
State ACB /Vigilance	State law/executive framework + criminal law	State-public-servant corruption	State police/vigilance powers	State territory and State jurisdiction	FIR, departmental recommendation, charge sheet
State police	Constitution, police law, criminal procedure	General policing and public order	General police powers	State territory, subject to law/courts	FIR, investigation, final report

Caption: Similar tools such as search or arrest arise from different statutes and must not be transferred from one agency to another by analogy.

Visual 58 — Offence-to-Agency Map

BRIBERY BY COVERED CENTRAL PUBLIC SERVANT

-> CBI/DSPE investigation route + CVC oversight; Lokpal route may apply

PROCEEDS OF CRIME / MONEY LAUNDERING

-> ED under PMLA; predicate-offence agency may be separate

SCHEDULED NATIONAL-SECURITY OFFENCE

-> NIA statutory route where invoked

CORPORATE FRAUD UNDER COMPANIES ACT

-> SFIO route where law/order assigns investigation

STATE PUBLIC-SERVANT CORRUPTION

-> State ACB/police ordinarily; CBI route needs lawful authority

Caption: More than one agency may lawfully touch a transaction, but each must remain within its own statute.

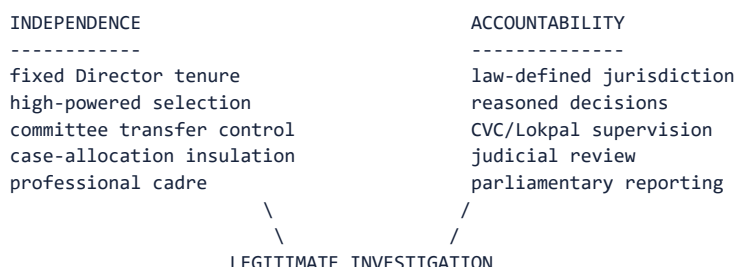
Visual 59 — Frequent Conflations

Trap	Correction
CBI investigates money laundering because it investigates economic offences	PMLA investigation is ED's statutory domain; CBI may investigate a connected predicate offence if competent
NIA and CBI are interchangeable central police	NIA has a scheduled-offence statute; CBI/DSPE has a different jurisdiction architecture
Lokpal is CBI's permanent administrative superior	Lokpal has special powers only for matters referred under its Act
CVC can order conviction or punishment	CVC advises/supervises; competent authority/court acts under law
State ACB is subordinate to CBI	They are separate Union/State investigative arrangements

Caption: UPSC distractors often move a true power from one body to the wrong body.

20. Independence, Accountability and Performance

Visual 60 — Independence-Accountability Balance



Caption: Independence without accountability risks arbitrariness; accountability without insulation risks political control.

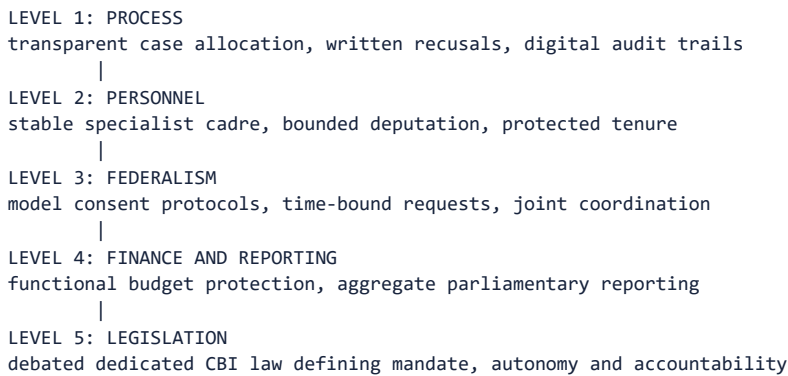
Visual 61 — Structural Challenge Matrix

Challenge	Why it matters	Safe evidence-led formulation
Executive administrative dependence	Staffing, budget and deputation can shape capacity	Administrative placement creates influence risk but does not prove case-specific dictation
State-consent fragmentation	Can delay multi-State investigation	Federal consent is a legal safeguard; predictable protocols can reduce tactical blockage
Vacancies/deputation dependence	Affects continuity and expertise	Discuss structurally; do not freeze current vacancy counts
Prosecution-sanction delay	Delays transition to trial	CVC statutorily reviews progress; do not invent pending numbers
Selective-use perception	Weakens legitimacy	Transparency and even-handed criteria are required; perception is not proof in a named case
Weak standalone CBI statutory design	Organisational mandate remains resolution-based	Dedicated legislation is a reform proposal, not existing law
Limited legislative visibility	Individual cases should not be politicised, yet system scrutiny matters	Strengthen aggregate reporting without revealing protected investigation detail

Caption: A high-scoring critique identifies the mechanism of dependence and then proposes a legally compatible remedy.

[LIMIT] This package does not state current officeholders, the number of States withholding general consent, case pendency, conviction rates, vacancies or sanction statistics. Such figures are transient and require date-specific official datasets.

Visual 62 — Reform Ladder



Caption: Reform should combine operational, federal, personnel and legislative measures rather than rely on one slogan.

Visual 63 — Proposal-Test Matrix

Proposal	Potential gain	Design safeguard needed
Dedicated CBI law	Clear organisation, mandate and accountability	Preserve State List and constitutional-court powers
Independent budget line	Reduces day-to-day leverage	Audit by CAG/Parliament
Permanent specialist cadre	Retains expertise	Diversity, lateral expertise and external accountability
Transparent case allocation	Reduces selective manipulation	Protect witness and operational secrecy
Federal consent protocol	Predictability in inter-State cases	Cannot amend section 6 by executive convenience
Stronger legislative report	System-level scrutiny	No disclosure prejudicing live investigation/trial

Caption: Every autonomy reform needs a reciprocal accountability control.

21. Current and Legal Control Sheet

Visual 64 — What Is Frozen and What Is Not

Included as stable legal control	Deliberately not frozen
CVC/DSPE/Lokpal statutory design	Current officeholders
2021 extension text and 2023 validity ruling	Number of non-consenting States
Official holdings of cited judgments	Live case totals/conviction rates
Official CBI history and jurisdiction explanation	Current vacancy or sanction-pendency figures
2026 Prelims question wording	Provisional answer letter/count

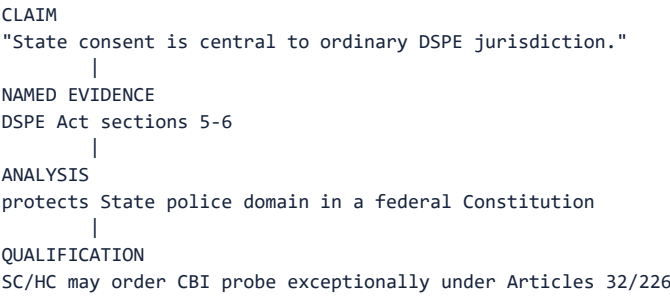
Caption: Durable legal structure belongs in core notes; volatile data belongs in a dated current-affairs update.

[CURRENT] Legal verification for this package used official statute/Gazette or Government-hosted text and official Supreme Court judgments/orders available for the control exercise.

[LIMIT] “Current as of 19 August 2026” is a control label for the package. Where a live matter lacks a separately verified official merits decision, the text stops at the last verified holding instead of predicting an outcome.

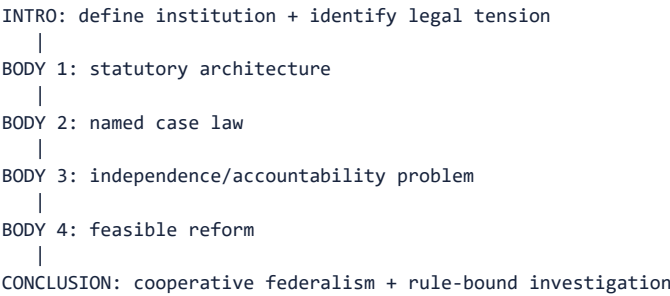
22. Answer-Writing Frameworks

Visual 65 — Claim-Evidence-Analysis-Qualification



Caption: Every major paragraph should move from proposition to authority to reasoning to limit.

Visual 66 — 15-Mark Answer Spine



Caption: A balanced answer uses law first, criticism second and reform last.

Visual 67 — Directive Decoder

Directive	Required response
Explain	Clarify mechanism and why it operates
Discuss	Present dimensions and balanced evaluation
Examine	Test a proposition against law/evidence
Analyse	Break into causal/institutional parts
Critically analyse	Establish value, identify limits, weigh alternatives and conclude

Caption: Do not answer “Explain” with an unstructured critique or “Critically analyse” with a list of provisions.

23. High-Yield Traps and Mini-Recap

Visual 68 — Twenty Prelims Traps

Trap statement	Correct position
CBI was created by DSPE Act	CBI by 1963 resolution; DSPE by 1946 Act
CVC is constitutional	CVC is statutory
CVC has three Vigilance Commissioners	One CVC + not more than two VCs
CVC appointment has CJI member	CVC committee: PM, Home Minister, Lok Sabha LoP/substitute
Director CBI committee has Home Minister	It has PM, Lok Sabha LoP/substitute, CJI/nominee
CVC advice is always binding	Disagreement is allowed with written reasons
CVC can dictate disposal of a CBI case	Statutory proviso prohibits this
CVC controls every CBI investigation	CVC superintendence is for the relevant PC Act field
Director has an automatic five-year term	Two-year minimum; conditional annual extensions; aggregate ceiling
State withdrawal kills every pending case	Validly instituted cases may continue under <i>Kazi Lhendup Dorji</i>
Courts need State consent	SC/HC exercise independent constitutional powers
Courts routinely transfer cases to CBI	<i>CPDR</i> requires exceptional, cautious use
Post-facto consent always cures defect	<i>Fertico</i> is fact-specific
2024 West Bengal ruling decided consent merits	It rejected a preliminary maintainability objection
PE is mandatory before every corruption FIR	<i>Thommandru</i> says no
FIR proves guilt	Only trial court determines guilt
Lokpal, CVC and CBI are a hierarchy	Their statutory functions intersect but remain distinct
ED is CBI's economic-offence wing	ED is a separate statutory enforcement agency
DoPT placement means PMO dictates all cases	Administrative placement is not proof of case-level command
"Caged parrot" is a statutory doctrine	It is criticism/context, not a statutory rule

Caption: Most prelims errors are caused by transferring one true fact to the wrong institution, field or procedural stage.

Visual 69 — One-Minute Recall

CVC = VIGILANCE + ADVICE + PC-ACT SUPERINTENDENCE
 CBI = ORGANISATION BY RESOLUTION
 DSPE = POLICE POWER BY STATUTE
 STATE = CONSENT IN ORDINARY STATE-AREA ROUTE
 COURTS = EXCEPTIONAL CONSTITUTIONAL ROUTE
 DIRECTOR = COMMITTEE + 2-YEAR FLOOR + CONDITIONAL EXTENSION
 LOKPAL = COMPLAINT-ROUTING AND REFERRED-MATTER SUPERVISION
 COURT = FINAL GUILT

Caption: This recall line provides the legal skeleton for both Prelims and Mains.

24. Verified Source and Authority Map

Visual 70 — Authority Hierarchy Used

Priority	Source class	Use in this package
1	Statutes/Gazette/India Code or official Government-hosted text	Composition, powers, consent, tenure, Lokpal interface
2	Official Supreme Court judgments/orders	Binding holdings and qualifications
3	Official CBI/CVC/DoPT pages	Institutional history, organisation and administrative description
4	Local UPSC knowledge/PYQ ledgers and official question paper	Routing, exact question wording and package continuity
5	Generic summaries	Discovery only; not relied on for contested legal propositions

Caption: Authority strength is part of answer quality; case law and statutory text outrank generic institutional description.

Named Primary Authorities

- [FACT] Central Vigilance Commission Act, 2003: sections 3-8, 11-14, 17-19 and relevant amended interfaces.
- [FACT] Delhi Special Police Establishment Act, 1946, as amended: sections 2-6, 4A, 4B, 4BA and 4C.
- [FACT] Lokpal and Lokayuktas Act, 2013: sections 11-12, 20, 23 and 25.
- [FACT] Prevention of Corruption Act, 1988, as amended: sections 17A and 19 for the limited approval/sanction explanation.
- [FACT] Official CBI history/about pages and DSPE text.
- [FACT] *Vineet Narain v Union of India* (1997).
- [FACT] *Kazi Lhendup Dorji v CBI* (1994).
- [FACT] *State of West Bengal v Committee for Protection of Democratic Rights* (2010).
- [FACT] *Alok Kumar Verma v Union of India* (2019).
- [FACT] *Fertico Marketing and Investment Pvt Ltd v CBI* (2020).
- [FACT] *CBI v Thommandru Hannah Vijayalakshmi* (2021).
- [FACT] *Dr Jaya Thakur v Union of India* (2023 INSC 616).
- [FACT] *State of West Bengal v Union of India* (2024 INSC 502), limited to the preliminary ruling stated above.
- [FACT] Official UPSC Civil Services (Main) Examination 2021 GS-II question and official 2026 Prelims GS-I Set A paper.

PYQ, Practice and Solved Workbook

A. PYQ Routing Audit

[FACT] The local direct-owner and cross-cutting routing ledgers, topic owners, recent Polity packages and official papers were searched for CVC/CBI-linked questions.

Visual 71 — Verified PYQ Coverage

Year/paper	Question	Routing status	Treatment
2021 GS-II Q11	CBI jurisdiction, State consent and federal character	Verified cross-cutting Polity PYQ	Fully solved below
2026 Prelims GS-I Q63, Set A	Organisation-function-controlling Ministry matching	Verified official paper; provisional key only in local control ledger	Exact question reproduced; deliberately unsolved

Caption: No additional question is labelled as a direct verified PYQ merely because it is thematically similar.

[LIMIT] The 2026 key in the local audit trail is provisional and records no answer letter. This package neither infers an answer from a provisional count nor resolves individual rows indirectly.

B. Verified Mains PYQ — 2021 GS-II Q11

Question: “The jurisdiction of the Central Bureau of Investigation regarding lodging an FIR and conducting a probe within a particular State is being questioned by various States. However, the power of States to withhold consent to the CBI is not absolute. Explain with special reference to the federal character of India.” **15 marks | 250 words |**
Directive: Explain

Visual 72 — PYQ Demand Map

PART 1: Why State consent exists
 DSPE sections 5-6 + State police field
 |
 PART 2: Why it is not absolute
 SC/HC constitutional power + pending-case rule
 |
 PART 3: Federal evaluation
 State autonomy + rights + judicial review
 |
 PART 4: Balanced conclusion
 exceptional court power + cooperative protocols

Caption: The question asks for a qualified federal explanation, not a defence of either unlimited Union power or an absolute State veto.

Model Solution

The CBI is an executive-created organisation, while its core police powers arise from the Delhi Special Police Establishment Act, 1946. [FACT] Sections 5 and 6 reflect India’s federal structure: the Central Government may extend DSPE powers to a State area, but their ordinary exercise requires the State Government’s consent. This respects “police” and “public order” as State List subjects.

Consent may be general for defined classes of cases or case-specific. [FACT] A State may prospectively withdraw general consent, thereby requiring a fresh legal basis for new investigations. However, the veto is not absolute for three reasons.

First, [FACT] in *Kazi Lhendup Dorji v CBI* (1994), the Supreme Court held that later withdrawal did not terminate investigations validly commenced while consent operated; CBI could complete them and submit its police report.

Second, [FACT] in *State of West Bengal v Committee for Protection of Democratic Rights* (2010), a Constitution Bench held that High Courts under Article 226 and the Supreme Court under Article 32 may direct a CBI investigation without State consent. Such power flows from the Constitution, not section 6, and protects fundamental rights and judicial review. [LIMIT] The Court required sparing, cautious and exceptional use; routine transfer would itself erode federal balance and State-police responsibility.

Third, the precise terms and timing of consent matter. [FACT] *Fertico Marketing* (2020) reached a fact-specific result and cannot be converted into a universal rule that later consent always cures a defect.

[ANALYSIS] Thus, Indian federalism creates neither an unchecked central police nor an unreviewable State shield. The preferred equilibrium is State consent in the ordinary route, constitutional-court intervention in exceptional cases, and transparent Union-State protocols for investigations crossing jurisdictions.

Examiner Value Addition

- Use “qualified State veto,” not “State consent is irrelevant.”
- Name sections 5-6 before citing *CPDR*.
- Distinguish pending cases from new cases after withdrawal.
- End with cooperative federalism and rights-protecting judicial review.

C. Verified Prelims PYQ — 2026 GS-I Q63 (Controlled Unsolved)

63. With reference to the organisations under the Government of India, consider the following details:

Sl. No.	Organisation	Function	Controlling Union Ministry
1.	Central Economic Intelligence Bureau (CEIB)	To coordinate between various law enforcement agencies	Ministry of Home Affairs
2.	Serious Fraud Investigation Office (SFIO)	To investigate complex corporate frauds	Ministry of Finance
3.	Central Bureau of Investigation (CBI)	To preserve values in public life and ensure the health of the national economy	Ministry of Personnel, Public Grievances and Pension

In how many of the above rows are the given details correctly matched? (a) 1 (b) 2 (c) 3 (d) None

Visual 73 — How to Audit a Matching Question Without Guessing

FOR EACH ROW, VERIFY THREE INDEPENDENT ELEMENTS

organisation identity
+
officially assigned function
+
current administrative ministry/department
=
row-level conclusion

Only then count correct rows.

Caption: A familiar function cannot compensate for a wrong ministry, and a correct ministry cannot compensate for an inaccurate mandate.

[LIMIT] **Resolution withheld:** the official paper wording is verified, but the available local answer-key control is provisional and contains no recorded answer letter. No option, count or row-wise conclusion is supplied here.

D. Original MCQs — 36 Questions

MCQ 1

Which statement most accurately describes the legal creation of the CBI?

A. It was established by a Government of India resolution in 1963, while DSPE police powers arise from the DSPE Act, 1946. B. It was constituted directly by Article 312 of the Constitution. C. It was created as a statutory body by the CVC Act, 2003. D. It was established by the Lokpal and Lokayuktas Act, 2013.

Answer: A.

Explanation: [FACT] CBI is an organisation created by the 1 April 1963 resolution. The DSPE Act constitutes the police establishment and supplies its central statutory powers.

MCQ 2

The Central Vigilance Commission consists of:

- A. A Central Vigilance Commissioner and exactly three Vigilance Commissioners. B. A Central Vigilance Commissioner and not more than two Vigilance Commissioners. C. A Chairperson, one judicial member and one expert member. D. A Central Vigilance Commissioner alone.

Answer: B.

Explanation: [FACT] CVC Act section 3 specifies one CVC as Chairperson and not more than two VCs as Members.

MCQ 3

Who are members of the statutory committee recommending appointment of the Central Vigilance Commissioner?

- A. Prime Minister, Chief Justice of India and Home Minister B. Prime Minister, Speaker of Lok Sabha and Lok Sabha Leader of Opposition C. Prime Minister, Home Minister and Lok Sabha Leader of Opposition/statutory substitute D. President, Prime Minister and Chief Justice of India

Answer: C.

Explanation: [FACT] CVC appointments use the PM-Home Minister-LoP committee. The CJI belongs to the CBI Director committee, not the CVC committee.

MCQ 4

Which is correct regarding CVC/VC tenure?

- A. Five years with no age ceiling B. Six years or age 65, whichever is earlier C. Four years with automatic reappointment D. Four years or age 65, whichever is earlier

Answer: D.

Explanation: [FACT] The four-year/65 rule applies. A VC appointed CVC remains subject to the aggregate four-year cap.

MCQ 5

Removal of the CVC for proved misbehaviour or incapacity ordinarily requires:

- A. Presidential reference, Supreme Court inquiry and presidential removal order B. A simple majority resolution of Lok Sabha C. Cabinet advice followed by immediate termination D. CVC selection committee recommendation alone

Answer: A.

Explanation: [FACT] Section 6 prescribes the Supreme Court inquiry route for proved misbehaviour or incapacity, distinct from listed direct statutory grounds.

MCQ 6

While supervising DSPE anti-corruption investigations, the CVC:

- A. May order conviction of a public servant B. Cannot require investigation or disposal of a particular case in a particular manner C. Replaces the trial court in evaluating evidence D. May exercise unlimited police power throughout India

Answer: B.

Explanation: [FACT] The section 8 proviso protects case-specific investigative judgment from dictated manner or result.

MCQ 7

If a covered organisation disagrees with CVC advice after an inquiry report, it must:

- A. Obtain Supreme Court approval B. Treat the advice as void without response C. Record reasons in writing and communicate them to CVC D. Refer every disagreement to Parliament

Answer: C.

Explanation: [FACT] CVC advice is not automatically binding, but section 17 requires written reasons for disagreement.

MCQ 8

The CVC's annual report:

- A. Is sent only to DoPT and remains confidential by statute B. Is submitted directly to the Supreme Court C. Excludes all reference to DSPE functioning D. Is presented to the President and laid before both Houses, with a separate relevant DSPE part

Answer: D.

Explanation: [FACT] Section 14 creates the annual reporting and parliamentary-laying mechanism.

MCQ 9

Under DSPE Act section 2, the baseline territorial police powers of DSPE apply to:

- A. Union Territories B. All States automatically C. Foreign territories D. Only railway property

Answer: A.

Explanation: [FACT] The State-area route is built through sections 5-6; Union Territories are the section 2 baseline.

MCQ 10

The classes of offences to be investigated by DSPE are specified by:

- A. Every State Governor independently B. The Central Government by notification under section 3 C. The CVC through an annual report D. The Lok Sabha Speaker

Answer: B.

Explanation: [FACT] Section 3 is the notified-offence gate; organisational importance alone does not create offence jurisdiction.

MCQ 11

Which correctly states the DSPE superintendence split?

- A. CVC supervises every CBI function, including INTERPOL administration. B. Central Government supervises every PC Act investigation without limitation. C. CVC supervises relevant PC Act investigations; Central Government supervises other DSPE matters, subject to special law. D. State Governments jointly supervise all CBI cases.

Answer: C.

Explanation: [FACT] DSPE Act section 4 divides superintendence by subject and remains subject to special provisions such as the Lokpal Act.

MCQ 12

CBI's administrative placement under DoPT necessarily means:

- A. CVC has no statutory role B. State consent is unnecessary C. Every investigation is unconstitutional D. Administrative placement alone does not prove lawful case-specific PMO direction

Answer: D.

Explanation: [ANALYSIS] Administration and investigative judgment are distinct. Any interference claim needs evidence and legal analysis.

MCQ 13

The high-powered committee recommending appointment of the CBI Director includes:

- A. Prime Minister, Lok Sabha LoP/substitute, and CJI or CJI nominee B. Prime Minister, Home Minister and CVC C. President, CVC and Attorney General D. Cabinet Secretary, Home Secretary and CJI

Answer: A.

Explanation: [FACT] This is the present section 4A committee. It should not be confused with the CVC appointment committee.

MCQ 14

The statutorily protected minimum tenure of the CBI Director is:

- A. One year B. Two years C. Three years D. Five years

Answer: B.

Explanation: [FACT] Section 4B creates a two-year floor; five years is only the aggregate maximum after conditional extensions.

MCQ 15

Under the 2021 DSPE amendment, a Director's extension:

- A. Is automatic until five years B. May be granted for any period by DoPT alone C. Requires public interest, committee recommendation and recorded reasons, one year at a time D. Can continue without an aggregate ceiling

Answer: C.

Explanation: [FACT] The conditions are cumulative and the aggregate period cannot exceed five years.

MCQ 16

Transfer of the CBI Director during protected tenure requires:

- A. CVC advice only B. State consent C. Parliamentary approval D. Prior consent of the section 4A committee

Answer: D.

Explanation: [FACT] The committee safeguard also informed the Supreme Court's substance-based reasoning in *Alok Verma*.

MCQ 17

Which best distinguishes general and case-specific State consent?

- A. General consent is standing for defined classes; case-specific consent is tied to a named case/facts. B. General consent comes from courts; specific consent comes from Parliament. C. General consent applies only to Union Territories. D. There is no legal difference.

Answer: A.

Explanation: [FACT] Scope, conditions and timing of the consent instrument determine its effect.

MCQ 18

According to *Kazi Lhendup Dorji*, withdrawal of consent:

- A. Retrospectively voids every act of investigation B. Does not automatically terminate investigations validly begun before withdrawal C. Gives CBI permanent jurisdiction over all future State cases D. Removes the need for a police report

Answer: B.

Explanation: [FACT] The rule is prospective and must not be enlarged into a general future-investigation power.

MCQ 19

The *CPDR* Constitution Bench held that:

- A. State consent is never required under section 6 B. Parliament alone may order a CBI investigation C. SC/HC may exceptionally direct CBI investigation without State consent under Articles 32/226 D. Every allegation against State police must go to CBI

Answer: C.

Explanation: [FACT] Constitutional judicial review supplies a separate route, to be used sparingly and cautiously.

MCQ 20

The safest reading of *Fertico Marketing* is:

- A. Consent defects are always irrelevant B. Later consent is constitutionally prohibited C. CBI may investigate any State employee without authority D. Its result was fact-specific and does not establish that later consent always cures absence of consent

Answer: D.

Explanation: [FACT] The consent rider, manner in which State servants emerged, later consent and pleaded prejudice were material.

MCQ 21

The 2024 Supreme Court judgment in *State of West Bengal v Union of India* cited here:

- A. Rejected a preliminary maintainability objection but did not decide merits B. Finally upheld every challenged CBI investigation C. Abolished section 6 consent D. Declared CBI unconstitutional

Answer: A.

Explanation: [FACT] The Court expressly limited the decision to the preliminary objection.

MCQ 22

The central principle of *Alok Kumar Verma* for Director protection is:

- A. Only a written transfer order can affect tenure B. Divesting powers may have transfer-equivalent effect and cannot evade committee protection C. The Director is immune from all supervision D. The President alone selects the Director

Answer: B.

Explanation: [FACT] The Court focused on the substance and effect of the action.

MCQ 23

Dr Jaya Thakur (2023) held that:

A. The 2021 amendment was wholly unconstitutional B. Every Director is entitled to five years C. The extension framework is valid, but its statutory conditions must govern each extension D. Written reasons are unnecessary

Answer: C.

Explanation: [FACT] Validity of the framework and legality of a particular extension are separate inquiries.

MCQ 24

The “caged parrot” phrase should be used in an answer as:

A. The text of DSPE Act section 4 B. A binding test invalidating all CBI reports C. Proof of interference in every case D. Judicial criticism/context, with enforceable safeguards traced to actual statutes and holdings

Answer: D.

Explanation: [LIMIT] The metaphor captures a legitimacy concern; it is not a substitute for ratio or proof.

MCQ 25

Under Lokpal Act section 20, complaints selected for preliminary inquiry concerning Group A-D public servants are routed:

A. To CVC in the manner specified by the Act B. Directly to Parliament C. Only to State police D. Automatically to ED

Answer: A.

Explanation: [FACT] The Act then distinguishes how CVC handles Group A-B and Group C-D matters.

MCQ 26

Which is correct after *Thommandru Hannah Vijayalakshmi*?

A. PE is an enforceable right of every accused. B. PE is not mandatory before every corruption FIR; a Regular Case may be directly registered when cognizable offence information is disclosed. C. CBI can never use source information. D. A PE must determine guilt.

Answer: B.

Explanation: [FACT] PE remains useful in an appropriate case but is not a compulsory precondition or a defence entitlement.

MCQ 27

Which institution finally determines criminal guilt?

A. CVC B. CBI C. The competent court after due process D. CVO

Answer: C.

Explanation: [FACT] Investigation and advice produce inputs; adjudication and conviction belong to the court.

MCQ 28

Which statement correctly separates CBI and ED?

A. ED is a wing of CBI. B. CBI exercises every power under PMLA. C. ED needs State consent under DSPE section 6 for every PMLA action. D. CBI may investigate a competent predicate offence, while ED separately exercises PMLA powers over money laundering.

Answer: D.

Explanation: [FACT] Overlapping facts do not merge statutory mandates.

MCQ 29

NIA differs from CBI primarily because NIA:

- A. Operates under the NIA Act's scheduled-offence architecture B. Is supervised by CVC for every case C. Was created by the 1963 CBI resolution D. Has no police powers

Answer: A.

Explanation: [FACT] The NIA Act supplies a distinct central-investigation route for scheduled offences.

MCQ 30

A departmental CVO is best understood as:

- A. The final criminal court B. An internal vigilance node connecting preventive/disciplinary work with the CVC framework C. A constitutional authority superior to CVC D. A general police station

Answer: B.

Explanation: [FACT] CVOs assist vigilance administration but do not acquire the full police powers of DSPE.

MCQ 31

Which reform best combines independence with accountability?

- A. Complete secrecy with no reporting B. Unlimited executive power to transfer investigators C. Transparent case-allocation safeguards plus protected operational confidentiality and audit D. Abolition of all judicial review

Answer: C.

Explanation: [ANALYSIS] Insulation must coexist with lawful review, reason-giving and aggregate reporting.

MCQ 32

Which statement on State consent is most accurate?

- A. It is absolute even against a High Court order. B. It is irrelevant because CBI is a Union agency. C. It applies only to economic offences. D. It governs the ordinary DSPE State-area route but is qualified by constitutional-court power and precedent on pending cases.

Answer: D.

Explanation: [FACT] This formulation preserves both section 6 federalism and judicial review.

MCQ 33

CVC's inquiry-related civil-court powers include:

- A. Summoning persons and requiring document production B. Sentencing an accused to imprisonment C. Registering every FIR in India D. Overriding a trial judgment

Answer: A.

Explanation: [FACT] Procedural powers for inquiry do not make CVC a criminal court.

MCQ 34

Which statement about the CBI Director of Prosecution is correct?

- A. The post is filled by State Governors. B. Central Government appoints on CVC recommendation, and the officer works under overall supervision and control of the CBI Director. C. The officer appoints the CBI Director. D. The post has no statutory tenure protection.

Answer: B.

Explanation: [FACT] DSPE Act section 4BA also provides a minimum two-year tenure.

MCQ 35

For DSPE posts of Superintendent of Police and above, the CVC-chaired committee:

A. Conducts criminal trials B. Replaces the section 4A Director committee C. Recommends appointment and tenure-related decisions after consulting the Director D. Requires approval from every State

Answer: C.

Explanation: [FACT] Section 4C creates this separate senior-personnel mechanism.

MCQ 36

For a Mains answer on CBI federalism, the strongest structure is:

A. Begin and end with the “caged parrot” phrase B. List allegations without law C. State that either Union or States have absolute power D. Claim -> sections 5-6 -> named cases -> federal analysis -> qualified reform

Answer: D.

Explanation: [ANALYSIS] The structure converts description into authority-backed evaluation.

E. Remedial MCQs — 12 Questions

Remedial MCQ 1

A student writes: “CBI is a statutory body created by the DSPE Act.” What is the best correction?

A. CBI was created by the 1963 resolution; DSPE is the statutory police establishment under the 1946 Act. B. CBI is a constitutional body. C. CBI was created by the CVC Act. D. The statement is fully correct.

Answer: A.

Explanation: Separate organisation from statutory police establishment.

Remedial MCQ 2

“CVC superintendence” permits CVC to:

A. Write the final judgment B. Supervise relevant processes but not dictate a particular case’s investigation or disposal manner C. Ignore the section 8 proviso D. Order automatic conviction

Answer: B.

Explanation: The case-dictation prohibition is a central independence safeguard.

Remedial MCQ 3

Which proposition correctly follows from *Kazi Lhendup Dorji*?

A. Consent can never be withdrawn. B. Withdrawal authorises all new CBI cases. C. Withdrawal does not retrospectively terminate investigations validly begun under earlier consent. D. State police cease to exist.

Answer: C.

Explanation: The holding protects continuity of already instituted investigations, not unlimited future jurisdiction.

Remedial MCQ 4

A High Court orders CBI investigation without State consent in an exceptional rights case. The authority comes from:

A. Deemed general consent B. DoPT administrative control C. CVC annual report D. Article 226 constitutional power as recognised in *CPDR*

Answer: D.

Explanation: Court direction is not a disguised section 6 consent route.

Remedial MCQ 5

Which condition belongs to the 2021 Director-extension framework?

- A. One-year-at-a-time extension on committee recommendation, public interest and recorded reasons B. Automatic five-year tenure from day one C. Oral reasons by DoPT alone D. No aggregate ceiling

Answer: A.

Explanation: Every annual extension requires statutory satisfaction; five years is only the aggregate maximum.

Remedial MCQ 6

For a Lokpal-referred DSPE investigation, the Lokpal:

- A. Decides guilt itself B. Has special statutory superintendence but cannot dictate investigation/disposal in a particular manner C. Becomes the State police chief D. Abolishes CVC

Answer: B.

Explanation: Section 25 combines special supervision with an express non-dictation safeguard.

Remedial MCQ 7

An FIR by CBI means:

- A. Conviction is certain B. CVC has imposed a penalty C. The formal investigation threshold is crossed, not that guilt is proved D. State consent can never be questioned

Answer: C.

Explanation: Allegation, FIR, charge sheet and conviction are different stages with different thresholds.

Remedial MCQ 8

Why does this package not state how many States currently withhold general consent?

- A. State consent is irrelevant. B. No State can withdraw it. C. Such data can never be published. D. The count is transient and must be verified against a date-specific official source.

Answer: D.

Explanation: [LIMIT] Durable notes should not freeze a volatile number without live official evidence.

Remedial MCQ 9

When a covered organisation disagrees with CVC advice, the accountability device is:

- A. Written reasons communicated to CVC B. Automatic imprisonment C. A fresh constitutional amendment D. State consent

Answer: A.

Explanation: Reason-giving enables institutional scrutiny while preserving competent-authority responsibility.

Remedial MCQ 10

Which trio belongs to the CBI Director selection committee?

- A. PM, Home Minister, CVC B. PM, Lok Sabha LoP/substitute, CJI/nominee C. President, Speaker, Attorney General D. CVC, CAG, UPSC Chairperson

Answer: B.

Explanation: Do not import the CVC appointment committee into DSPE section 4A.

Remedial MCQ 11

Which pairing is correct?

A. ED — DSPE Act B. NIA — PMLA C. CBI/DSPE — notified offences and DSPE jurisdiction; ED — PMLA money-laundering field D. CVC — general criminal trial

Answer: C.

Explanation: Each body's power must be traced to its own governing law.

Remedial MCQ 12

Who gives the final determination of criminal guilt?

A. Media B. CBI Director C. CVC D. Competent court

Answer: D.

Explanation: The presumption of innocence continues through investigation and prosecution.

Visual 74 — MCQ Rotation Audit

Original MCQs 1-36:

A B C D | A B C D | A B C D | A B C D | A B C D
| A B C D | A B C D | A B C D | A B C D

Remedials 1-12:

A B C D | A B C D | A B C D

Continuous total:

48 markers = (A B C D) repeated 12 times

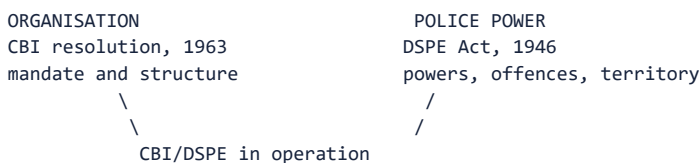
Caption: The correct option never repeats consecutively and the rotation continues across the original/remedial boundary.

F. Original Solved Mains Practice — 8 Questions

Solved Mains 1 — 10 Marks / 150 Words

“The CBI’s organisational birth and its investigative powers arise from different legal instruments.” Explain.

Visual 75 — Two-Layer Thesis



Caption: The distinction prevents the common error of calling CBI itself a statutory body created by the DSPE Act.

Model solution:

The Central Bureau of Investigation is a Union investigative organisation, but its legal identity is hybrid.

[FACT] The Government of India established CBI through a Home Ministry resolution dated 1 April 1963. The resolution organised a wider bureau covering investigation and anti-corruption, economic offences, special crimes and related work. Therefore, no standalone “CBI Act” created the organisation.

[FACT] Its core police powers are principally exercised through the Delhi Special Police Establishment constituted under the DSPE Act, 1946. Section 2 supplies the Union Territory baseline; section 3 requires notified offence classes; sections 5-6 govern extension to State areas and State consent. The DSPE Act also provides the superintendence, Director-selection, tenure and senior-appointment architecture.

[ANALYSIS] Thus, executive creation explains organisational form, while statute supplies coercive authority and limits. An executive resolution cannot by itself override federal consent, criminal procedure or judicial safeguards.

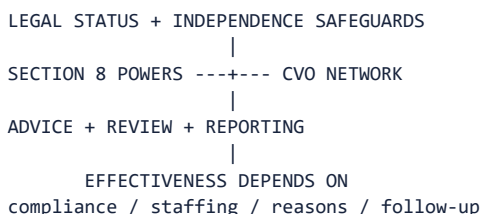
[LIMIT] Calling CBI “non-statutory” should not imply that its investigators act without statutory power. The precise formulation is: **CBI is executive-created; DSPE police powers are statutory.**

Conclusion: A dedicated CBI law may improve institutional clarity, but until enacted, answers must preserve this two-layer legal identity.

Solved Mains 2 — 15 Marks / 250 Words

Examine whether the CVC is an effective “apex vigilance institution” despite being primarily advisory and supervisory.

Visual 76 — CVC Effectiveness Test



Caption: Formal power creates capacity; organisational compliance converts capacity into outcome.

Model solution:

The CVC Act, 2003 makes the Central Vigilance Commission the statutory apex of the Union vigilance framework, but not a general anti-corruption police force.

[FACT] Its institutional strength lies in a multi-member Commission, committee-based presidential appointment, fixed tenure, protected removal, post-tenure employment restrictions, expenditure charged on the Consolidated Fund of India and annual reporting to Parliament.

Operationally, [FACT] section 8 gives CVC superintendence over DSPE investigations under the Prevention of Corruption Act, constrained direction power, complaint/reference inquiry routes, review of investigations and prosecution-sanction applications, advice to covered central organisations and supervision of vigilance administration. Through CVOs, it can combine preventive vigilance with departmental follow-up.

However, its model is deliberately bounded. It cannot dictate how a named case must be investigated or disposed of, conduct every criminal investigation itself, impose criminal guilt, or operate as a universal ombudsman. [FACT] Its advice is not automatically binding; the organisation may disagree after recording and communicating reasons.

[ANALYSIS] Advisory status is not necessarily weakness. It preserves departmental responsibility and avoids merging investigator, prosecutor and adjudicator. Yet effectiveness falls when reasons are formulaic, appointments or staffing are delayed, CVOs lack functional independence, prosecution sanction is slow, or aggregate reporting does not produce legislative scrutiny.

Way forward: strengthen time-bound reasoned compliance, professional CVO protection, digital vigilance analytics, public aggregate reporting and follow-up audit, while retaining the prohibition on case-specific dictation.

Conclusion: CVC is structurally significant but outcome-dependent—an oversight hub whose credibility rests on the quality of advice, compliance and transparent institutional response.

Solved Mains 3 — 15 Marks / 250 Words

Analyse the constitutional and statutory limits on State power to deny CBI jurisdiction.

Visual 77 — Qualified State Veto



Caption: State consent is legally meaningful but not superior to constitutional judicial review.

Model solution:

State control over police and public order is a core federal feature. The DSPE Act translates that feature into an ordinary territorial gate for CBI/DSPE investigations.

[FACT] Section 5 authorises the Central Government to extend DSPE powers to a State area, while section 6 requires the State Government's consent. Consent may be general for defined categories or specific to a case. A State may prospectively withdraw general consent, ordinarily requiring fresh authority for new investigations.

The power is nevertheless qualified. First, [FACT] *Kazi Lhendup Dorji v CBI* held that withdrawal did not retrospectively terminate investigations validly begun when consent existed. The agency could complete investigation and submit the police report.

Second, [FACT] the Constitution Bench in *State of West Bengal v CPDR* held that the Supreme Court and High Courts may direct a CBI probe without State consent under Articles 32 and 226. Such authority arises from constitutional judicial review and protection of fundamental rights, not from a fiction of consent. [LIMIT] The power must be used sparingly, cautiously and exceptionally, so State police are not routinely displaced.

Third, consent disputes remain fact-sensitive. [FACT] *Fertico Marketing* cannot be generalised into an automatic post-facto cure. Likewise, the 2024 *West Bengal v Union* ruling cited here rejected only a maintainability objection and did not settle merits.

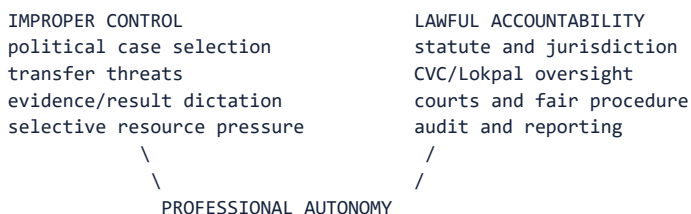
[ANALYSIS] An absolute State veto could shield rights violations; an unchecked Union police could undermine the State List. Federalism therefore requires a rule-bound ordinary consent route, exceptional judicial correction and cooperative protocols for inter-jurisdictional crime.

Conclusion: The State's power is substantial, prospective and federal—but neither retrospective over every pending case nor immune from constitutional review.

Solved Mains 4 — 20 Marks / 300 Words

"The central challenge is not to make CBI unaccountable to government, but to make investigation independent of improper control while keeping the agency answerable to law." Critically analyse.

Visual 78 — Insulation with Answerability



Caption: Institutional design must remove outcome manipulation without creating a secret, self-judging police authority.

Model solution:

CBI occupies a difficult constitutional position: it handles nationally significant investigations, yet its organisation is executive-created, its administration lies within the Union executive and its State-area powers are federally conditioned.

Several safeguards support independence. [FACT] *Vineet Narain* led to statutory CVC supervision over PC Act investigations, a protected minimum tenure and committee-based appointment/transfer safeguards. DSPE section 4A

disperses Director selection across the Prime Minister, Opposition and judiciary. Section 4B protects a two-year minimum and requires committee consent for transfer. [FACT] *Alok Verma* prevented evasion of this protection through transfer-equivalent divestment of powers. The 2021 extension regime requires public interest, committee recommendation, written reasons and annual renewal within a five-year aggregate ceiling.

Yet vulnerabilities remain. [ANALYSIS] Executive influence may operate through staffing, deputation, budget, promotion, selective references or public narratives even without a written direction. State-consent withdrawals can fragment investigations. Sanction delays and vacancies can weaken timelines. Perceived selective use damages public trust even where evidence in a particular case is sound.

However, complete insulation from government would be constitutionally undesirable. Police power requires legal jurisdiction, financial audit, service regulation, prosecution scrutiny and judicial review. CVC and Lokpal superintendence are themselves bounded: neither may dictate a particular case result. Parliament must receive system-level information, while courts ensure due process and the accused retains the presumption of innocence.

Reform should therefore:

1. enact a debated CBI law defining organisation, mandate and accountability;
2. protect a professional multidisciplinary cadre and functional budget;
3. make case allocation, recusals and transfer reasons auditable;
4. develop statutory-consistent federal consent protocols;
5. strengthen aggregate parliamentary reporting without prejudicing live cases; and
6. penalise unlawful interference while preserving lawful supervision.

Conclusion: The goal is neither “CBI under command” nor “CBI beyond control,” but **operationally insulated, legally bounded and publicly accountable investigation**.

Solved Mains 5 — 10 Marks / 150 Words

Differentiate the roles of Lokpal, CVC, CBI and departmental CVOs in processing corruption allegations.

Visual 79 — Role-to-Output Chain

LOKPAL	-> complaint route and statutory directions
CVC	-> vigilance supervision, advice and referral
CBI/DSPE	-> police investigation and final report
CVO	-> departmental vigilance and preventive control
COURT	-> guilt determination

Caption: Complementarity arises because each institution produces a different legal output.

Model solution:

The four institutions form an interconnected but non-hierarchical anti-corruption network.

[FACT] Lokpal receives complaints against persons covered by the Lokpal Act. It may order preliminary inquiry or investigation through its Inquiry Wing or an agency including DSPE. Section 20 routes specified Group A-D preliminary inquiries to CVC, and section 25 gives Lokpal special superintendence over DSPE matters referred by it.

[FACT] CVC is the apex Union vigilance institution. It supervises relevant DSPE anti-corruption investigations, reviews investigation and sanction progress, advises covered organisations and oversees vigilance administration. It cannot dictate a named case’s manner of disposal.

[FACT] CBI/DSPE exercises police powers: registration, evidence collection, searches/arrests where lawful and submission of charge sheet or closure report.

CVOs are departmental nodes for preventive vigilance, complaint examination, system correction and disciplinary coordination.

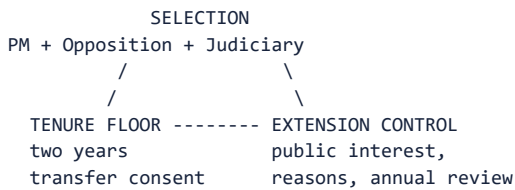
[ANALYSIS] The institutions are complementary because complaint scrutiny, vigilance advice, police investigation, prosecution and adjudication require different safeguards.

Conclusion: Treating one as the universal superior of the others obscures statutory routes and produces incorrect UPSC answers.

Solved Mains 6 — 15 Marks / 250 Words

Discuss how the appointment and tenure architecture of the CBI Director attempts to reconcile continuity with democratic accountability.

Visual 80 — Director Safeguard Triangle



Caption: Selection dispersion, tenure security and conditional continuation address different risks.

Model solution:

Continuity in a premier investigation agency protects ongoing cases from disruption, while democratic accountability prevents the Director from becoming an unreviewable authority.

[FACT] DSPE Act section 4A requires appointment by the Central Government on recommendation of a committee comprising the Prime Minister, Lok Sabha Leader of Opposition—or statutory substitute—and Chief Justice of India or nominee. The cross-institutional design reduces unilateral appointment.

[FACT] A CVC-chaired committee prepares the eligible IPS panel on seniority, integrity and anti-corruption investigation experience, considering the outgoing Director's views. Section 4B then provides a minimum two-year tenure and requires prior section 4A committee consent for transfer.

The judiciary has protected the substance of tenure. [FACT] *Alok Kumar Verma* treated divestment of powers as having transfer-like effect and required committee consideration.

The 2021 amendment introduced conditional continuation beyond the initial tenure: [FACT] each extension must be in public interest, based on section 4A committee recommendation, supported by written reasons, granted one year at a time and remain within an aggregate five-year ceiling. *Dr Jaya Thakur* upheld this framework.

[ANALYSIS] The design creates continuity but raises two concerns: repeated annual extensions may create perceived dependence on reappointment, and “public interest” can become formulaic unless reasons receive genuine scrutiny.

Reform: publish non-sensitive reasons, initiate succession planning early, maintain objective performance criteria and preserve judicial review.

Conclusion: The two-year floor protects independence; committee-based, reasoned annual extension protects accountability. Neither the floor nor the ceiling is a personal entitlement.

Solved Mains 7 — 15 Marks / 250 Words

Compare CBI with ED, NIA and State anti-corruption agencies. Why is legal-domain separation essential?

Visual 81 — Domain Separation

CBI/DSPE -> notified corruption/economic/special crimes
ED -> FEMA/PMLA enforcement and money laundering
NIA -> NIA Act scheduled offences
State ACB-> State-public-servant corruption / State police field

Same transaction can create parallel lawful proceedings,
but no agency inherits another statute's powers.

Caption: Factual overlap allows coordination; it does not erase jurisdictional boundaries.

Model solution:

India's enforcement system is functionally specialised rather than organised around a single national police body.

[FACT] CBI is an executive-created organisation whose core police powers come through the DSPE Act. It handles notified anti-corruption, economic and selected special-crime work, subject to territorial consent or court-order rules.

ED is a separate Union agency operating under FEMA and the Prevention of Money Laundering Act. Its money-laundering, attachment and related powers cannot be attributed to CBI merely because CBI investigates economic offences.

NIA operates under the NIA Act's scheduled-offence and national-security architecture. Its central assumption of investigation follows a different statute and cannot be used to explain DSPE section 6.

State ACBs/vigilance police ordinarily investigate corruption involving State public servants under State police jurisdiction and applicable criminal law. They are not subordinate branches of CBI.

[ANALYSIS] A single transaction may involve bribery, corporate fraud, a scheduled offence and laundering of proceeds. Parallel agencies may therefore act, but each needs its own offence nexus, territorial authority and procedure. Domain separation:

- protects federalism and legality;
- prevents forum shopping and duplicated coercion;
- clarifies evidence-sharing and prosecution responsibility;
- enables judicial review of each power; and
- helps the accused and public understand legal thresholds.

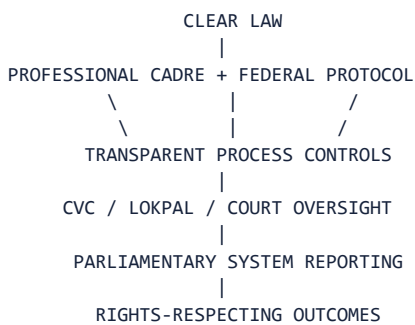
Way forward: create formal inter-agency coordination protocols, common digital evidence standards and lead-agency rules while preserving statutory independence.

Conclusion: Coordination should connect jurisdictions, not collapse them. The correct question is never “which agency is strongest?” but “which statute authorises which act?”

Solved Mains 8 — 20 Marks / 300 Words

Propose a reform framework for CVC-CBI that strengthens anti-corruption effectiveness without weakening federalism, due process or parliamentary accountability.

Visual 82 — Reform Architecture



Caption: Durable reform aligns mandate, capacity, federal consent, due process and public accountability.

Model solution:

Anti-corruption reform must address both ineffective investigation and misuse of investigative power. A stronger CBI without federal or rights safeguards may centralise coercion; a stronger consent veto without accountability may obstruct serious cases.

1. Clear legislative mandate: [ANALYSIS] Parliament should debate a dedicated CBI law defining organisational status, offence domain, internal allocation, appointment machinery, protected functional budget, reporting and unlawful-interference offences. It must preserve DSPE section 6 principles and constitutional-court powers.

2. Professional capacity: Build a stable multidisciplinary cadre in policing, forensic accounting, cyber evidence, procurement and prosecution. Deputation should remain available for diversity but should not create chronic dependence. Fixed investigator tenures and documented transfers can protect continuity.

3. Federal protocol: Union and States should adopt a legally consistent model for general/case-specific consent, time-bound requests, reasons, joint teams and evidence transfer. [LIMIT] An executive protocol cannot override sections 5-6; it can only make their exercise predictable.

4. CVC effectiveness: Strengthen CVO functional protection, sanction-delay dashboards, preventive-vigilance analytics, reasoned disagreement with CVC advice and follow-up audits. Preserve the statutory bar on directing a case's particular result.

5. Transparent investigation governance: Use auditable case allocation, written recusals, conflict registers and non-sensitive publication of policy criteria. Operational secrecy should protect evidence and witnesses, not hide arbitrary selection.

6. Due process: Ensure jurisdictional review, section 17A/19 compliance where applicable, time-bound PE/FIR decisions, disclosure obligations, presumption of innocence and effective judicial remedies. Investigative speed cannot substitute for evidentiary quality.

7. Parliamentary accountability: CVC's annual report should present comparable aggregate indicators on investigation stages, sanction delays, systemic risks and action on advice. Committees may scrutinise institutions without demanding prejudicial detail from live cases.

8. Independent review: Periodic expert review of institutional design and public reporting can test whether safeguards reduce both delay and interference.

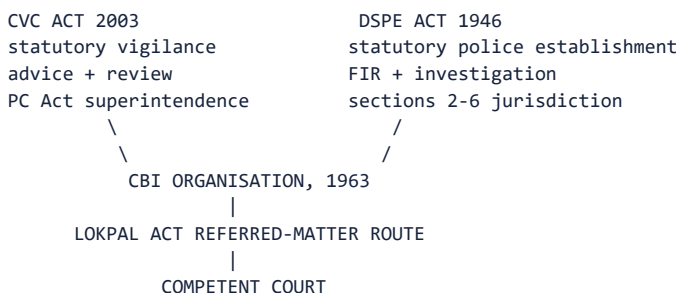
Conclusion: The reform objective is a **federal, professional and rights-bound national investigation capacity**—independent in evidence and case judgment, accountable in jurisdiction, resources, reasons and outcomes.

Final Consolidated Register Notes

1. Topic Thesis

CVC supervises vigilance; CBI is the organisation; DSPE supplies police power; States control the ordinary State-area route; constitutional courts retain exceptional corrective power.

Visual 83 — Register-Page Master Map



Caption: Use this as the first diagram in any revision notebook.

2. Evolution in Six Lines

1. [FACT] 1941: wartime SPE created by executive order for bribery/corruption connected with War and Supply transactions.
2. [FACT] 1943: wartime ordinance supplied an interim legal framework.
3. [FACT] 1946: DSPE Act created the continuing statutory police establishment.
4. [FACT] 1963: Government resolution created CBI; DSPE became its Investigation and Anti-Corruption Division.
5. [FACT] 1964: CVC created by resolution following the Santhanam Committee recommendation.
6. [FACT] *Vineet Narain* trajectory led to statutory CVC and codified Director/oversight safeguards through the CVC Act, 2003 and DSPE amendments.

Visual 84 — Evolution Mnemonic

S - Special Police Establishment
D - DSPE Act
B - Bureau created by resolution
V - Vigilance Commission by resolution
J - Judicial safeguards in Vineet Narain
S - Statutory CVC

"S D B V J S" = SPE -> DSPE -> Bureau -> Vigilance -> Judgment -> Statute

Caption: The mnemonic preserves the correct executive/statutory sequence.

3. CVC Snapshot

Head	Register note
Status	Statutory apex vigilance institution; not constitutional
Composition	CVC + not more than two VCs
Appointment	President; recommendation of PM + Home Minister + Lok Sabha LoP/substitute
Eligibility	Union/All-India administrative-vigilance experience or specified public-sector/specialist experience
Category balance	Not more than two of the three appointees from either eligibility category
Tenure	Four years or age 65, whichever earlier
VC-to-CVC	Permitted through appointment process; aggregate maximum four years
Post-tenure	Specified presidential assignments and further government office-of-profit employment barred
Expenses	Charged on Consolidated Fund of India
Report	President -> both Houses; separate relevant DSPE part

4. CVC Removal

Route A — proved misbehaviour/incapacity

President reference -> Supreme Court inquiry -> Court report -> President removal order

Route B — listed direct grounds

- adjudged insolvent;
- conviction involving moral turpitude in Central Government's opinion;
- paid outside employment during term;
- mental/physical infirmity making continuation unfit in President's opinion; or
- prejudicial financial/other interest.

Deemed misbehaviour: prohibited concern/interest in specified Government of India contract or benefit, subject to the incorporated-company qualification.

5. CVC Section 8 Core

Visual 85 — “S-D-I-R-A-V” Recall

S = Superintend DSPE PC Act investigations
D = Directions, but no particular-case dictation
I = Inquiry/investigation on reference or covered complaint
R = Review investigations and sanction applications
A = Advice to Union/covered bodies
V = Vigilance-administration supervision

Caption: “S-D-I-R-A-V” reproduces the operational sequence without turning CVC into police or court.

Critical limits

- [LIMIT] not a general police station;
- [LIMIT] no power to force a case to be investigated/disposed in a particular manner;
- [LIMIT] no criminal conviction power;
- [LIMIT] complaint/person coverage is statutory, not universal;
- [FACT] advice may be disagreed with, but written reasons must be communicated;
- [FACT] civil-court-like inquiry powers do not make CVC a criminal court.

6. CVO Notes

- CVO = internal vigilance bridge within a Ministry/department/PSU/body.
- Preventive role: risk mapping, sensitive-post rotation, procurement control, conflict management, audit trails.
- Punitive role: complaint examination, disciplinary coordination, referral for investigation.
- CVO is neither CBI officer by default nor final disciplinary/criminal authority.
- Reform focus: stable tenure, professional expertise, direct functional access and auditable follow-up.

7. CBI/DSPE Snapshot

Head	Register note
CBI creation	1 April 1963 Government resolution
DSPE creation	DSPE Act, 1946
Police powers	DSPE Act + applicable criminal procedure/special law
Section 2	UT baseline
Section 3	Central Government-notified offence classes
Section 4	Superintendence split; administration in Director
Section 5	Extension of DSPE jurisdiction/powers to State area
Section 6	State consent for ordinary exercise in State
Domains	Anti-corruption, officially supported economic/special-crime work, INTERPOL NCB
Administrative placement	DoPT; not proof of lawful PMO direction in individual cases

Visual 86 — DSPE “2-3-4-5-6” Ladder

2 = Union Territory powers
3 = offence notification
4 = superintendence + administration
5 = extend to State area
6 = State consent

Caption: This five-number ladder is the fastest prelims and Mains recall device for jurisdiction.

8. Superintendence Split

- [FACT] CVC: DSPE investigations concerning PC Act offences and connected same-trial offences.
- [FACT] Central Government: other DSPE matters, save special statutory provisions.
- [FACT] Director: administration of DSPE.
- [FACT] Lokpal: special superintendence over preliminary inquiry/investigation referred by it.
- [LIMIT] CVC and Lokpal are both barred from dictating investigation/disposal of a particular case in a particular manner.

9. CBI Director

Appointment

Eligible IPS panel -> CVC-chaired panel preparation -> PM + LoP/substitute + CJI/nominee recommendation -> Central Government appointment

Tenure

- minimum protected tenure: two years;
- transfer: prior section 4A committee consent;
- extension: public interest + committee recommendation + written reasons;
- one year at a time;
- aggregate maximum five years;
- five years is not automatic.

Cases

- *Vineet Narain*: tenure/oversight/internal professional safeguards.
- *Alok Verma*: divesting powers can be transfer-equivalent; committee safeguard applies to substance.
- *Jaya Thakur*: extension amendments valid; statutory conditions remain mandatory.

Senior posts

- Director of Prosecution: Central Government appoints on CVC recommendation; minimum two years; overall supervision/control of CBI Director.
- SP and above: CVC-chaired committee recommends appointment/tenure decisions after consulting Director.

10. State Consent

Visual 87 — Consent Decision Tree

WHERE?

```
|
+--> Union Territory -> section 2 baseline
|
+--> State
    |
    +--> valid State consent? -> ordinary DSPE route
    |
    +--> SC/HC order? -> constitutional route
    |
    +--> investigation validly began before withdrawal?
        -> may continue under *Kazi Lhendup Dorji*
```

Caption: Always identify territory before discussing consent.

General consent

- standing permission for specified case/offence/person categories;
- may contain riders;
- can be prospectively withdrawn.

Case-specific consent

- tied to named facts, FIR, persons or offences;

- scope depends on exact instrument.

Never write

- State consent is meaningless;
- State veto is absolute against constitutional courts;
- withdrawal automatically voids pending cases;
- post-facto consent always cures absence of consent;
- a current number of withholding States without date-specific official proof.

11. Consent Cases

Case	One-line holding	Qualification
<i>Kazi Lhendup Dorji</i> (1994)	Withdrawal did not stop investigations validly begun earlier	No blanket future power
<i>CPDR</i> (2010)	SC/HC can order CBI probe without State consent	Exceptional, sparing, cautious
<i>Fertico Marketing</i> (2020)	Challenge failed on its specific consent/fact/prejudice setting	No universal post-facto-cure rule
<i>West Bengal v Union</i> (2024)	Preliminary maintainability objection rejected	Merits not decided in cited ruling

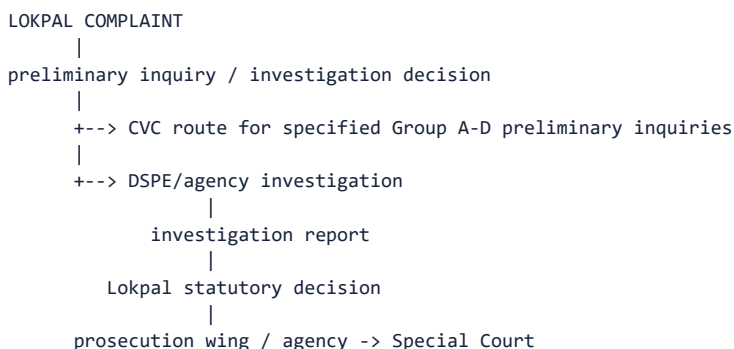
12. Vineet Narain Safeguards

1. statutory CVC;
2. CVC oversight of anti-corruption investigation;
3. minimum Director tenure;
4. committee control over transfer;
5. Director's professional/internal work-allocation freedom;
6. CBI Manual adherence;
7. continuing judicial concern with institutional independence.

[ANALYSIS] These are buffers against improper control, not a declaration that CBI is outside government and law.

13. Lokpal Interface

Visual 88 — Lokpal-CVC-CBI-Court Flow



Caption: Lokpal controls its referred-matter route without becoming the investigator or trial court in every case.

Key provisions

- Inquiry Wing: preliminary inquiry into alleged PC Act offences by covered public servants.
- Prosecution Wing: files case before Special Court after Lokpal direction.
- Section 20: preliminary inquiry/investigation routes and procedural safeguards.
- Section 23: prosecution-sanction power in the Lokpal route, subject to the Act.
- Section 25: Lokpal superintendence over referred DSPE matters; no case-result dictation.

14. Investigation Lifecycle

1. complaint/source information/reference;
2. threshold assessment;
3. PE where appropriate, or direct FIR/Regular Case where cognizable offence information is disclosed;
4. lawful investigation and evidence collection;
5. statutory approval/sanction gates where applicable;
6. final police report—charge sheet or closure;
7. court consideration;
8. trial;
9. acquittal or conviction.

Judicial control

- *Lalita Kumari*: FIR registration duty where cognizable offence disclosed; limited preliminary inquiry where appropriate.
- *Thommandru*: PE not mandatory in every corruption case and not an accused's right; direct Regular Case permissible on sufficient cognizable-offence information.

Threshold mnemonic: PE tests disclosure; FIR starts investigation; charge sheet states agency case; trial determines guilt.

15. PC Act Safeguard Gates

- Section 17A: previous approval for specified inquiry/investigation concerning official recommendations/decisions, when statutory conditions apply; read exceptions exactly.
- Section 19: previous sanction for cognizance of specified offences.
- CVC reviews progress of sanction applications.
- Approval/sanction is not guilt determination.
- Delay weakens effectiveness; removal of safeguards altogether risks harassment and poor decision-making.

16. Comparison Capsule

Body	Memory phrase
CVC	Vigilance supervisor and adviser
CBI/DSPE	Police investigator under consent/jurisdiction rules
Lokpal	Statutory complaint router and referred-matter supervisor
CVO	Departmental vigilance node
ED	FEMA/PMLA enforcement and money-laundering agency
NIA	Scheduled-offence national-security investigator
State ACB/police	State police-domain corruption/general investigation
Court	Final adjudicator

17. Independence vs Accountability

Independence tools

- high-powered Director selection;
- protected minimum tenure;
- committee transfer control;
- CVC/Lokpal non-dictation provisos;
- stable investigator tenure;
- professional cadre;
- auditable case allocation.

Accountability tools

- statutory offence and territorial limits;
- CVC/Lokpal supervision;
- judicial review and trial;
- written reasons;
- financial audit;
- annual/parliamentary reporting;
- due-process rights and presumption of innocence.

Visual 89 — Balance Formula

INDEPENDENCE

- improper outcome control
- transfer threats
- selective case allocation

+ ACCOUNTABILITY

- jurisdiction
- reasons
- courts
- audit/reporting

= LEGITIMATE INVESTIGATION

Caption: Use the formula as the conclusion to any institutional-reform answer.

18. Critiques

- executive administrative dependence;
- resolution-based organisational status;
- deputation and specialist-capacity dependence;
- federal consent fragmentation;
- sanction and inter-agency delay;
- perception of selective use;
- confidentiality-accountability tension;
- weak public understanding of differing legal thresholds.

[LIMIT] Do not convert structural risk into an allegation against a named officeholder or case without evidence.

19. Reform Notes

1. dedicated CBI legislation after federal consultation;
2. independent but audited functional budget;
3. stable multidisciplinary cadre;
4. transparent, protected case allocation and recusal;
5. time-bound, legally compliant State-consent protocol;
6. written reasons for transfers, extensions and disagreement with CVC advice;
7. CVO professionalisation and preventive-vigilance analytics;
8. aggregate parliamentary reporting that protects live investigations;
9. digital evidence and inter-agency standards;
10. effective remedy against unlawful interference.

20. Mains Vocabulary

Use:

- “executive-created organisation with statutory police powers through DSPE”;
- “qualified federal consent gate”;
- “constitutional-court route independent of section 6 consent”;
- “operational insulation with legal answerability”;
- “superintendence without case-result dictation”;
- “reason-giving as an accountability device”;
- “conditional extension, not automatic entitlement”;
- “parallel statutory jurisdictions, not institutional merger.”

Avoid:

- “CBI is a constitutional/statutory body”;
- “CVC can punish/convict”;
- “State consent is absolute/irrelevant”;
- “CBI investigates all money laundering”;
- “five-year Director tenure is automatic”;
- “caged parrot is binding legal doctrine.”

Visual 90 — Final 30-Second Revision Box

CVC: 2003 Act | 1 + <=2 | PM-HM-LoP | 4 yrs/65
SECTION 8: supervise, direct-with-limit, inquire, review, advise, vigilance
CBI: 1963 resolution | DSPE: 1946 Act
DSPE 2-3-4-5-6: UT, offences, control, extension, consent
DIRECTOR: PM-LoP-CJI | 2-year floor | transfer consent
EXTENSION: public interest + committee + reasons + 1 year + max 5
COURTS: *CPDR* exceptional no-consent route
WITHDRAWAL: *Kazi* pending valid cases continue
LOKPAL: referred-matter route | no case-result dictation
GUILT: court alone

Caption: If these ten lines are correct, the core topic is legally controlled.

21. Current-Control Limits to Write in the Margin

- [CURRENT] Structure and holdings controlled to 19 August 2026 for this package.
- [LIMIT] No current officeholders frozen.
- [LIMIT] No count of States withholding consent frozen.
- [LIMIT] No live case, conviction, vacancy or sanction-pendency statistic frozen.
- [LIMIT] 2026 Prelims Q63 remains unresolved here because the routed key is provisional and records no answer letter.
- [LIMIT] The cited 2024 West Bengal judgment is used only for preliminary maintainability, not merits.
- [LIMIT] “Caged parrot” is context, not ratio.
- [LIMIT] Every CBI jurisdiction answer must identify offence, territory and authority route.

Final conclusion: CVC-CBI reform should protect evidence-based investigation from improper power while preserving federal consent, constitutional judicial review, due process, reasoned supervision and parliamentary system accountability.